

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 06/03/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 489

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C23-00085

CASE NAME: LAURA BEGIN VS. SAN RAMON VALLEY FIRE PROTECTION DISTRICT

*TRIAL SETTING CONFERENCE TO TRAIL SUMMARY JUDGMENT ALREADY ON CALENDAR

FILED BY:

TENTATIVE RULING:

This Case Management Conference / Trial Setting Conference (CMC) trails the hearing on Line 5. The Parties are ordered to appear for a TSC, unless the tentative ruling is unopposed.

2. 9:00 AM CASE NUMBER: C25-00261

CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC

*CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on Line 12. Since Line 12 is unopposed,

this CMC is continued to August 25, 2026 at 8:30 a.m. The Parties shall file a further case management conference statement and are ordered to meet and confer to discuss Alternative Dispute Resolution. No appearance is required on June 3, 2026.

3. 8:31 AM CASE NUMBER: C25-00694
CASE NAME: ELIZABETH HILAMAN VS. MCDONALD'S USA, LLC
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on Lines 14 and 15. This CMC is continued to trail the discovery motion scheduled for September 9, 2026 at 8:30 a.m. The Parties are ordered to meet and confer to discuss alternative dispute resolution.

4. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on Lines 18 and 19. It is continued, along with those Lines, to June 10, 2026 at 9:00 a.m.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00085
CASE NAME: LAURA BEGIN VS. SAN RAMON VALLEY FIRE PROTECTION DISTRICT
HEARING ON SUMMARY MOTION RE DEFENDANTS SAN RAMON VALLEY FIRE PROTECTION DISTRICT AND JOHN DUGGAN

FILED BY:

TENTATIVE RULING:

Before the Court is a motion for summary judgment, or in the alternative, summary adjudication of issues filed by defendants San Ramon Valley Fire District and John Duggan. For the reasons set forth, the motion for summary judgment is **denied**, and the motion for summary adjudication is also **denied**.

Background

Plaintiff Laura Begin was hired by defendant San Ramon Valley Fire District ("SRV Fire" or the "District") as the EMS Coordinator in September 2019. In November 2021, she was placed on a medical leave by her doctor. She extended her medical leave several times until March 2023, when she resigned her position.

In the operative second amended complaint ("2AC"), Plaintiff has sued the District on four causes of action under the California Fair Employment and Housing Act, Government Code section 12940, et seq. ("FEHA") for retaliation (1st C/A), harassment – hostile work environment (2nd C/A), failure to prevent discrimination and harassment (3rd C/A), and gender discrimination (4th C/A). She has also sued Chief John Duggan. The Court previously sustained the Duggan demurrer to the first cause of action without leave to amend. (12/13/2023 Min. Order.) Duggan remains a defendant in the second

through fourth causes of action.

Legal Standards for Ruling on Motion for Summary Judgment and Summary Adjudication

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161.)

Motions for summary adjudication under Code of Civil Procedure section 437c(f)(1) "are 'procedurally identical' to summary judgment motions." [Citation.]" (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) A motion for summary adjudication under Code of Civil Procedure section 437c(f)(1) can only be granted "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1).) (*See also Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant meets this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue of fact exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

In employment cases involving claims for discrimination and retaliation, courts in California apply the three-stage burden-shifting analysis established by the United States Supreme Court in *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792, a test originally developed in the context of the burdens of proof at trial. (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1192; *Wilkins v. Community Hospital of Monterey Peninsula* (2021) 71 Cal.App.5th 806, 828 ["In summary judgment proceedings, a FEHA retaliation claim is treated the same as a FEHA discrimination claim" for purposes of the *McDonnell Douglas* burden-shifting analysis].)

"When seeking summary judgment or summary adjudication in an employment discrimination case, the burdens established by the *McDonnell Douglas* framework are altered. The 'employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff's prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors.' [Citations omitted.] If the employer satisfies its initial burden, it '[w]ill be entitled to summary [adjudication] unless the plaintiff produces admissible evidence which raises a triable issue of fact material to the defendant's showing.' In short, by applying *McDonnell Douglas*'s shifting burdens of production in the context of a motion for summary [adjudication], 'the judge [will] determine whether the litigants have created an issue of fact to be decided by the jury.' . . . Thus, '[a]lthough the burden of proof in a [discrimination] action claiming an unjustifiable [termination] ultimately rests with the plaintiff . . . , in the case of a motion for summary . . . adjudication, the burden rests with the moving party to negate the plaintiff's right to prevail on a particular issue.[]' [Citation, some internal quotation marks omitted.] '[F]rom commencement to conclusion, the party moving for summary [adjudication] bears the burden of persuasion that there is no triable issue of material fact and that [it] is entitled to judgment as a

matter of law.' [Citation omitted.] [¶] Whether judgment as a matter of law is appropriate will depend on a number of factors, including the strength of the plaintiff's *prima facie* case, the probative value of the proof that the employer's explanation is false, and any other evidence that supports the employer's case. [Citation omitted.] However, many employment cases present issues of intent and motive, issues not determinable on paper. Such cases 'are rarely appropriate for disposition on summary judgment, however liberalized [summary judgment standards may] be.' [Citation omitted.]" (*Zamora v. Security Industry Specialists, Inc.* (2021) 71 Cal. App. 5th 1, 32-33 [quoting, among other decisions, *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317].)

In deciding a motion for summary judgment, the Court views the evidence in the light most favorable to the opposing party, drawing "all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of the motion are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180 [quoting *Rosas v. BASF Corp.* (2015) 236 Cal.App.4th 1378, 1392].) (See also Code Civ. Proc. § 437c(d) ["[S]ummary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact."].)

"All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1483.)

Plaintiff's Request for Judicial Notice

Plaintiff filed requests for judicial notice, Exhibits 50 through 89 of her exhibits in support of her opposition. All of the documents subject to Plaintiff's requests for judicial notice are Board of Directors Meeting Packets for meetings of the board of the San Ramon Valley Fire Protection District ranging in date from March 22, 2026 to December 12, 2023. To the extent necessary under Code of Civil Procedure section 437c(q), the Court will address defendants' evidentiary objections to the requests for judicial notice of Plaintiff's Exhibits 50-89 below with defendants' other evidentiary objections.

Procedural Note on Plaintiff's Evidentiary Objection Stated in Response to Defendants' Separate Statement

Evidentiary objections stated in a response to the moving party's separate statement do not comply with Rule 3.1354 of the California Rules of Court. (See Pl. Resp. to UMF No. 8.) The Court will not rule on an evidentiary objection stated in that manner as not in compliance with Rule 3.1354.

Procedural Note on Reply Separate Statement

Code of Civil Procedure section 437c as amended effective January 1, 2025 states in relevant part, "The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers."

(Code Civ. Proc. § 437c(b)(4) [emphasis added].) Even if Moving Parties' reply separate statement does not include additional material facts or new evidentiary matter, it includes extensive argument that, if considered, would violate the letter and spirit of the reply page limitations on a summary judgment motion. The Court therefore does not consider the reply separate statement.

Analysis

Defendants move for summary judgment, or in the alternative, summary adjudication of issues as to each of the four causes of action alleged in the 2AC. The motion is supported by defendants' Separate Statement ("SS") of Undisputed Material Facts ("UMFs"). Defendants' SS consists of 118 UMFs, but in Issue Number 3, UMFs 42-75 repeat UMFs 1-34. In Issue Number 4, UMFs 78-105 repeat UMFs 1-29, and UMFs 108-118 repeat UMFs 31-41. UMFs 106 and 107 are not identical to UMFs 30 and 31, but they are similar.

Plaintiff filed a Response to the SS in which she responds to defendants' UMFs without repeating and responding to UMFs 42-75 (Issue Number 3) and UMFs 78-114. (See Plaintiff's Resp. to SS.) Nevertheless, the Court interprets Plaintiff's Response as incorporating UMFs 42-75 and 78-114 and her responses to UMFs 1-41.

Plaintiff's Response to the SS also includes Plaintiff's additional material facts ("AFs") which she contends demonstrate there are triable issues of material fact precluding summary judgment or summary adjudication of any of the causes of action (see AFs 119-321).

A. Facts Which Are Undisputed

The District provides fire, rescue and emergency medical services to certain communities in Contra Costa County, including Alamo, Blackhawk, Danvill, Diablo and the City of San Ramon, among others, serving a population of approximately 193,000 and an area of approximately 155 square miles. (UMF 2; Pl. Resp. to UMF 2.) The District's Emergency Medical Services Division ("EMS Division") is responsible for providing emergency medical services in the area covered by the District, with approximately 130 paramedics, and with medical equipment and procedures for providing prehospital medical services. (UMF 4; Pl. Resp. to UMF 4.)

There was no specific job description for the chief overseeing the EMS Division. (UMF 5; Pl. Resp. to UMF 5.) The duties of the EMS Coordinator-RN, a new position created by the District in 2019, and for which Begin was hired, included developing and maintaining the skills of the District's 130 paramedics, including providing them medical training. (UMFs 10, 11, 13; Pl. Resp. to UMFs 10, 11, 13.) No prior firefighting experience was required for the EMS Coordinator-RN position, and Plaintiff did not have prior firefighting experience. (UMFs 12, 14; Pl. Resp. to UMFs 12, 14.)

Defendant Duggan was a Battalion Chief acting as EMS Division Chief from September 2019, when Begin was hired, until March 2020, when Duggan was transferred and Battalion Chief James Selover was assigned to serve as EMS Division Chief. (UMFs 15, 16, 18; Pl. Resp. to UMFs 15, 16, 18.) Duggan was later made Training Battalion Chief 6 or 8 months after March 2020. (UMF 17; Pl. Resp. to UMF 17.) Selover had been a Captain and a Battalion Chief. (UMF 18; Pl. Resp. to UMF 18.) In August 2020, Selover was named Deputy Chief of the District, which created a need for another EMS Division Chief, and Chief Meyer assigned Battalion Chief Jonas Aguiar, who had been a Captain and then a Battalion Chief since 2018, to be EMS Division Chief. (UMFs 20, 21; Pl. Resp. to UMFs 20, 21.)

In April 2020, the District hired a retired fire fighter, Lon Phares, to perform certain special projects for the EMS Division. (UMF 23; Pl. Resp. to UMF 23.) In July 2021, Chief Meyer decided to have Lance Maples work in the EMS Division as the Interim EMS Division Chief. (UMF 25; Pl. Resp. to UMF 25.) Plaintiff does not dispute the number of years of experience of, or previous positions held by, Selover, Aguiar, Phares, and Maples, each of which had worked for the District or for another fire agency for more than a decade when they were assigned to the position of EMS Division Chief (or Interim EMS Division Chief for Maples), or to perform certain special projects in the case of Lon Phares. (Pl. Resp. to UMFs 18, 21, 24, 26.)

Plaintiff has not genuinely disputed UMF 30. The UMF describes reasons Begin contends she was more qualified than Maples to be head of the EMS division, and she "disputes" the fact by arguing they are the reasons Maples was less qualified. (Pl. Resp. to UMF 30.) The evidence cited in support of the dispute is that Meyer considered the role one of a civilian nature, so the title of EMS Division Manager was more appropriate than a division chief. (Pl. Resp. to UMF 30 [citing Pl. Index of Exhs. Exh. 112 [Meyer DT 48:10-15].])

On November 19, 2021, Plaintiff began medical leave which was extended from time to time until approximately March 13, 2023, when she resigned from the District. (UMF 34; Pl. Resp. to UMF 34.)

The general conduct by defendant Duggan Plaintiff alleges constituted harassment and created a hostile work environment is largely undisputed. (UMFs 35-41.) The conduct and statements by Duggan include a number of statements related to sexual activities, including the sexual activities of co-workers described by Duggan to Plaintiff at least once a week in 2020 and 2021, sexually suggestive comments at a retirement party for a District Board member held at Chief Meyer's house in November 2020, a rumor started by Duggan that Plaintiff was romantically involved with Chief Selover, a sexually suggestive text message exchange in June 2020 after a party, and Duggan speaking to Plaintiff at work in a "rude, condescending and degrading" tone on June 15, 2021. (UMF 35; Pl. Resp. to UMF 35.) The nature of the statements and conduct by Duggan are set forth in more specific detail in UMFs 36-41, which are essentially undisputed. It is the legal significance of the statements and conduct that is disputed by the parties.

Though listed as disputed, Plaintiff has not genuinely disputed UMF 76, in which defendants assert the first time Begin contends she made a complaint about Duggan was in November 2020. Neither Begin Declaration paragraph 19, which addresses her June 15, 2021 meeting with Duggan in which she contends he spoke to her in a rude and demeaning manner, nor Molineaux Declaration paragraph 24 (authenticating Plaintiff's Exhibit 139, the August 2021 Resendez investigation report), or the cited portions of the Selover deposition transcript support her response that she had complained orally to Selover multiple times prior to November 2020.

Plaintiff has also not genuinely disputed UMF 77 regarding Duggan's lack of awareness that Plaintiff had complained about his conduct until August 2021. The fact that Duggan was reprimanded in December 2020 as a result of Begin's complaint to the District does not mean that Duggan was informed that Begin was the employee who complained about his use of racial slurs in a meeting several other individuals attended. The UMF as stated does not address whether the District was aware of Plaintiff's complaints about Duggan, only whether Duggan himself was aware that Plaintiff had complained about him.

UMFs 115-118 are not disputed. UMFs 115-117 describe some statements made by Duggan at Chief Meyer's house at a retirement party for a District Board member in November 2020. UMF 118 summarizes the June 15, 2021 conversation between Begin and Duggan regarding a training issue in which Duggan was abrasive, told Plaintiff not to discuss training with a training Captain because the Captain did not know what he was talking about, and slammed the door because vacuuming was occurring outside his office. (*See also* UMFs 38-41.)

B. Material Facts Plaintiff Contends Are Disputed

In assessing whether Plaintiff has genuinely disputed UMFs and raised triable issues based on Plaintiff's AFs, the Court has considered evidence the Court finds material to the determination of the motion and to which either no objection has been made or as to which the Court has overruled the objection. The Court notes that in many instances, more than one item of evidence is listed as supporting Plaintiff's Response to a disputed UMF or an AF, in many cases excerpts of deposition transcripts to which no evidentiary objections were made.

Defendants argue Begin's testimony at deposition and in her declaration is "self-serving" and "uncorroborated." (Reply p. 4, ll.13-15.) The argument that a party's testimony is "self-serving" is an argument that has been rejected as founded on an outdated rule in which parties could not testify on their own behalf. (*See Oiyee v. Fox* (2012) 211 Cal.App.4th 1036, 1049-1050 ["Modern courts have recognized that all evidence proffered by a party is intended to be self-serving in the sense of supporting the party's position, and it cannot be discounted on that basis. [Citations omitted.]"]; *Michaels v. Greenberg Traurig, LLP* (2021) 62 Cal. App. 5th 512, 526 [same].)

Courts have sometimes characterized evidence offered in a declaration in opposition to a motion for summary judgment as "self-serving" and insufficient to raise a triable issue if the declaration statements directly contradicts prior admissions by the declarant in a deposition or written discovery response. (*Harris v. Thomas Dee Engineering Co., Inc.* (2021) 68 Cal. App. 5th 594, 605 [citing among other decisions *Price v. Wells Fargo Bank* (1989) 213 Cal.App.3d 465, 482, overruled on other grounds in *Riverisland Cold Storage, Inc. v. Fresno-Madera Production Credit Assn.* (2013) 55 Cal.4th 1169, 1182].) (*See also D'Amico, supra*, 11 Cal.3d at 21.) Defendants do not contend Begin's declaration in opposition to the motion contradicts her prior deposition testimony. Further, the testimony of one witness has been held to constitute substantial evidence. (*See, e.g., Greenwich S.F., LLC v. Wong* (2010) 190 Cal.App.4th 739, 767-768 [though reversing a verdict granting lost profits as damages, court stated, "The testimony of one witness may provide substantial evidence. [Citation omitted.] Cancelled checks or official documentation of the costs incurred are not required to support the jury's award. The absence of such documentation goes to the weight of the evidence and the credibility of the witness. Those determinations are for the jury."].)

1. Facts Plaintiff Disputes Related to Gender Discrimination – Issue Number 1

The Court will summarize in some detail the disputes Plaintiff presents regarding a number of UMFs in Issue Number 1 on her gender discrimination claim. The Court evaluates whether there are triable issues based on the facts in the context of the applicable law in a subsequent section of the ruling.

Plaintiff has genuinely disputed UMF 5 to the extent that UMF states that "every person" who has held the position of EMS Division Chief since 2014 was a Battalion Chief, and that the Battalion Chief job description of the District applies. (Pl. Resp. to UMF 5.) Plaintiff has genuinely disputed UMF 5,

because Maples was designated to lead the EMS Division in 2021, and he was not a Battalion Chief under the District's Battalion Chief job. (Pl. Resp. to UMF 5; Def. Index of Exhs., Exhs. 4 and 5.) The Court notes that despite testimony by Chief Meyer cited by Plaintiff regarding Chief Meyer considering Maples to be the EMS Division Manager rather than a "Chief," a number of defendants' UMFs nevertheless refer to Maples as the "Interim EMS Division Chief." (See UMFs 31-33.) This shifting designation of Maples' title/position itself raises some factual dispute. Swartzell's declaration cited by Plaintiff in support of her dispute addresses the EMS Coordinator position and does not address qualifications of the EMS Division Chief. (Pl. Resp. to UMF 5 [citing Swartzell Decl. ¶¶ 6, 7, 9, 10.]) Plaintiff has genuinely disputed UMFs 6 and 7 as an incomplete statement of the Battalion Chief job description minimum qualifications which refer to service as Fire Captain or Training Captain within the District which is material to the issues in dispute (Pl. Resp. to UMFs 6, 7.)

Plaintiff disputes in part UMFs 18, 19, 21, 22, 24, 26-32, which address the qualifications of the four men chosen by Meyer as EMS Division Chiefs from March 2020 through July 2021, the reasons Meyer chose those individuals for the position rather than choosing Plaintiff, and why Plaintiff contends her professional experience and medical services certifications made her more qualified for the position than the individuals chosen by Meyer to fulfill the head of the EMS Division role. Plaintiff argues that the male individuals were chosen based on their experience in fire suppression that they had as a Fire Captain or Battalion Chief. She contends that background was not relevant to the head of the EMS Division position which is a civilian position and focused on rendering medical services, and that her qualifications based on her professional experience in administration and certifications related to the provision of medical services therefore made her qualifications superior to the four men chosen by Meyer to fill the EMS Division Chief position. (Pl. Resp. to UMFs 18, 19, 21, 22, 24, 26-32.)

Plaintiff argues she has disputed Meyer's stated reasons for selecting the four male individuals and not her by showing Meyer's stated reasons were pretextual based on the evidence cited in opposition to UMFs 18, 19, 21, 22, 24, and 26-32. That evidence includes:

(1) the Swartzell Declaration, in which he declares that he had no fire suppression experience but when he was designated EMS Quality Improvement Coordinator pursuant to an offer of employment signed December 31, 2003, he was given the rank of Captain, a uniform, and a badge, and designated a safety employee, and took over the position of EMS Coordinator from Debbie Meier in 2006, who also had the rank of Captain, was a designated safety employee, and did not have a fire suppression background (Pl. Resp. to UMFs 18, 19);

(2) the minimum qualification of being a Battalion Chief per the District's job description required the Fire Captain or Battalion Chief service to be within the District, so Maples did not qualify as his Battalion Chief service was with another agency; (Pl. Resp. to UMFs 19, 22);

(3) Meyer admitted the EMS Division leadership standard was "discretionary" because Chief Meyer testified the leader could be a division chief or a division manager, and Chief Meyer recognized the civilian nature of the position in later giving Maples the title of EMS Division Manager (Pl. Resp. to UMFs 19, 21, 22, 26, 27);

(4) Meyer testified it was not a matter of "if" Begin could get to the role of EMS Manager but "when" (Pl. Resp. to UMFs 19, 21, 22, 28);

(5) historically the District had given Fire Captain designation to EMS personnel without the

personnel having fire suppression experience or completing the fire academy training, and the District had given the Captain designation to personnel "without fire suppression backgrounds meaning 'fire department experience' was not necessary to the role." (Pl. Resp. to UMFs 19, 21, 22, 26);

(6) the minimum qualifications for EMS Manager created in December 2023 were drafted to fit Maples (who was given the Interim EMS Manager role in July 2021) (UMFs 19, 22) (the Court does not consider the evidence regarding the December 2023 EMS Manager qualifications as the evidentiary support for the fact is Plaintiff's RJN Exhibit 89, which is unauthenticated – see ruling on evidentiary objections below);

(7) Maples admitted Plaintiff's COVID response in the EMS Division was "second to none" (Pl. Resp. to UMFs 19, 22);

(8) the 2020 Core Review recommended restructuring the EMS Division away from Battalion Chiefs and "toward civilian clinical staff with ALS or ER nursing backgrounds" which is "further evidence that fire suppression experience was not necessary to the role" (Pl. Resp. to UMFs 19, 21, 22, 28) (per Begin Decl. ¶ 23, the District retained three consultants, including Maples, in or about September 2020 to perform the review which prepared the 2020 Core Services Review report issued late 2020 or early 2021);

(9) the special projects assigned to Lon Phares for the EMS Division were "administrative and logistical projects" and "not tasks requiring fire suppression experience as a Captain, Battalion Chief, or Deputy Chief," and Defendants "fail to articulate how fire suppression experience qualified" Phares for the administrative and logistical tasks (Pl. Resp. to UMF 24);

(10) Chief Meyer does not state he compared "the qualification of Ms. Begin with Mr. Maples" in deciding to appoint Maples to the Interim EMS Manager position in July 2021 (Pl. Resp. to UMF 26);

(12) Maples had an expired EMT license and no current emergency medical training such that he was "objectively less clinically qualified" than Begin for the EMS Division leadership, but Meyer did not consider Maples' lack of credentials and emergency medical training other than his expired EMT license made Maples less qualified than Plaintiff to head the EMS Division (Pl. Resp. to UMFs 26, 30, 31);

(13) Meyer had no personal knowledge of working with Maples other than the 2020 Core Review, the fire operation Maples oversaw did not have EMS, and therefore Plaintiff contends Meyer was not familiar with "what qualifications Maples had that would allow him to run EMS" and nothing about Maples' experience as a Chief of the El Cerrito fire agency "that necessarily made him more qualified when it came to EMS" (Pl. Resp. to UMF 27);

(14) the timing of Maples' appointment as Interim EMS Division Chief (or EMS Manager), which was three weeks after Plaintiff's June 15, 2021 complaint about Duggan to Deputy Chief Selover, supports that Meyer's reasons for not choosing her were pretextual (Pl. Resp. to UMF 28);

(15) the 2020 Core Services Review recommended that the lead for the EMS Division would still be the Deputy Chief of the District (Pl. Resp. to UMF 28 [citing Pl. Exh. 110 [Maples DT 50:10-13]]);

(16) Maples was introduced to the District Board "in a single line as 'EMS Consultant'," and in

December 2023 Meyer used the "appointment without process" to justify Maples getting the permanent role of EMS Manager (Pl. Resp. to UMF 28). The Court finds the cited evidence in support of Plaintiff's response to UMF 28 does not support these statements, but the general proposition that Maples began as a consultant seems undisputed;

(17) Meyer did not consider Plaintiff's exceptional performance, COVID response leadership, and "deep EMS clinical expertise" made her qualified for the EMS Division leadership position while placing a man with "no clinical credentials above her in a medical services division" raises a triable issue of pretext (Pl. Resp. to UMF 29). The evidence cited in support of these statements in Plaintiff's response to UMF 29 does not support that Meyer did not consider Plaintiff's EMS experience, credentials or work for the District on the COVID response. Meyer implicitly testified that he was aware of her experience but stated that she had "no fire experience – or prehospital" and "then all of a sudden the world shuts down. She's only employed with us for two years. A year plus this kind of Covid thing. She just needed more time. It wasn't that she couldn't get there" and "you've got to go into the job of the EMS coordinator and do it and build up more than a year of, you know, consistency and then we could see more" (Pl. Index of Exhs. Exh. 112 [Meyer DT 59:15-22 and 61:21-25]);

(18) Meyer's declaration attesting that he considered Maples' "relevant expertise to be serving in agency-wide management roles in fire agencies" contradicts his deposition testimony and is an "after-the-fact characterization" which was "never articulated as a selection criterion before, during, or immediately after Maples' appointment" (Pl. Resp. to UMF 32). The evidence Plaintiff cites to support these propositions does not show necessarily a direct contradiction; the cited excerpts of Meyer's deposition (other than DT 71:13-73:6 which is cited but not included in either Plaintiff's Index of Exhibits, Exhibits 111 and 112) indicate that the head of the EMS Division could be either a chief or a manager, that he considered the position of a civilian nature so the manager title was more appropriate, that he was looking for someone to "manage" the division but did not believe there were specific minimum qualifications established for the position, that he spoke with "labor to make sure that there might not be somebody that wanted to go into that division as chief," and that no applications were solicited for the role, and there was no interview process (Pl. Resp. to UMF 32 [citing Pl. Exh. 111 - Meyer DT 40:13-41:6, Pl. Exh. 112 – Meyer DT 37:4-20, 48:5-10, 49:22-25, and 50:5-10]);

(19) There was no posting, job description, or application process for the position (Pl. Resp. to UMF 32).

The Court notes that UMF 29 does not recite the complete list of reasons Plaintiff contends she was qualified as set forth in her responses to Employment Law Form Interrogatory No. 202.2, Def. Exh. 8 to Def. Index of Exhibits. (*Compare* UMF 29 to Resp. to Empl. Form Rog. 202.2 [omitting "Responding Party had an extensive global health and management experience. Additionally, during Responding Party's previous employment in ER management she established and developed strong and trusted relationships with hospital management, county EMS services, residential care home directors and community members."].) Plaintiff has disputed that the reasons set forth in UMF 29 is an exhaustive list of the reasons she contends she was qualified to head the EMS Division, and that dispute is supported by her form interrogatory response.

Plaintiff disputes UMF 33 which addresses the fact that Plaintiff was excluded from meetings in

September 2021 regarding "Standards of Coverage" (Standards of Cover Meetings) which Maples attended. (Pl. Resp. to UMF 33.) There is no dispute that Begin was excluded from the meetings, and that two other women from the District did attend the meetings, Denise Pangelin (Director of Emergency Communications), and Davina Hatfield (Chief Financial Officer and head of the Finance Division). Plaintiff disputes that the reason she was excluded from the Standards of Cover Meetings was because she was not leading the division, as she contends the District improperly placed Maples above her, and that she was also excluded from budget and ISO (Insurance Services Organization) meetings. (Pl. Resp. to UMF 33.)

2. Facts Plaintiff Disputes Regarding Issue Numbers 2, 3, and 4 on Gender Harassment Based on Hostile Work Environment, Retaliation, and Failure to Prevent Discrimination and Hostile Work Environment

Issue Number 2 addressing Plaintiff's cause of action for hostile work environment (which defendants' label gender harassment) is supported only by UMFs 35-41, which are generally not disputed, as set forth above. Plaintiff arguably disputes UMF 35 as an incomplete statement of the November 2020 harassing conduct by Duggan at the party at Meyer's home, which Plaintiff expands upon in her response and citations to evidence. (Pl. Resp. to UMF 35.) Other UMFs are either not disputed, or Plaintiff disputes the legal and factual significance of the facts and events stated, not the facts per se.

In support of Issue Number 3 on Retaliation, defendants re-state UMFs 1-34 above as UMFs 42-75. They also include two facts, UMFs 76 and 77, addressed above. In support of Issue Number 4 on failure to prevent discrimination and hostile work environment, defendants have again re-stated UMFs 1-29 and 31-41, as set forth above, and added UMFs 115-118. The undisputed and disputed facts relevant to Issue Numbers 3 and 4 are not repeated but are set forth above.

C. Plaintiff's Additional Material Facts

Plaintiff has presented over 200 AFs which she contends raise triable issues. To the extent the AFs are supported by inadmissible evidence to which the Court has sustained evidentiary objections, the Court does not consider those facts unless there is other admissible evidence cited in support of the fact and the other admissible evidence is sufficient to support the AF. (*See, e.g.*, AFs 138, 140, 154, 156, 176, 177, 178, 182, 183, 288-292, 298.)

The Court summarizes only a few of the material AFs given the extensive number presented. The role of EMS Coordinator to which Begin was assigned was not a new role in the District, but the District changed the role to a civilian role when Begin was hired, such that she was not given the rank of Captain and designated as a safety employee. (AFs 127-137, 141-146.) Chief Meyer knew Maples only as a professional colleague and attended Maples' retirement party before Meyer recruited him as a consultant for the core services review in 2020, a review which included the EMS Division. (AFs 147-153.) The Core Services Review was completed in December 2020. (AF 155.)

Plaintiff asserts Meyer promised she would have an opportunity for growth and advancement before she began her employment. (AFs 158, 159.) Deputy Chief Selover told Plaintiff to be patient and that she was doing a good job when she asked about moving up in the EMS Division. (AF 162.) The Core Review Services recommended removing the Battalion Chief from supervising the EMS Coordinator with the EMS Coordinator instead reporting directly to the Deputy Chief. (AFs 165-166.)

Maples was appointed head of the EMS Division (Interim EMS Division Chief or Manager) on July 19, 2021, about two weeks after Meyer initiated a call to Maples to ask if he would be interested in the EMS Division Chief role. (AFs 167, 168.) His appointment was also made shortly after Begin complained in writing about Duggan's comments made in a June 15, 2021 meeting. (AF 267.) The role of EMS Division Chief was vacant from April 2021 until Maples was appointed July 19, 2021. (AF 268.) No application process, job posting, or interview process occurred when Maples was appointed. (AFs 303, 304.) Meyer changed Maples' position to "manager" because he considered the position a civilian position. (AFs 300, 301.)

D. Additional Comments on Plaintiff's Evidence in Opposition to the Motion

Plaintiff cites RJN Exhibit "80" as a District Board of Directors packet dated April 27, 2016 in support of AFs 138 and 140. The Court presumes based on the stated facts in those AFs regarding Andrew Swartzwell's retirement that Plaintiff intends to refer to RJN Exhibit 50, which is a March 22, 2016 Board packet. Swartzwell declares he retired from the District in March 2016. (Swartzwell Decl. ¶ 2.) (RJN Exhibit 80 is a District Board packet dated April 26, 2023.) The Court has not considered Plaintiff's RJN Exhibits 62-86 as Plaintiff's Response to the UMFs in the SS and Plaintiff's AFs do not cite any of those exhibits.

In support of a number of the more than 200 AFs included in Plaintiff's Response to the SS, Plaintiff in many instances cites to paragraphs of the declaration of her counsel Molineaux to support the facts stated in the AFs. The paragraphs cited in the Molineaux Declaration do not set forth evidentiary facts and do not support the facts stated. (AFs 121-124, 150, 151, 155, 164-166, 182, 184, 186, 196-200, 245, 258, 262-264, 270, 271, 295, 296; *see also* Pl. Resp. to UMFs 24, 35, and 77.) Rather, the paragraphs cited merely authenticate exhibits attached to Plaintiff's Index of Exhibits, but those exhibits are not identified or cited in support of the AFs. (*Compare to* AF 163 [citing Plaintiff's Exh. 125, text message exchange between Begin and Hatfield], AFs 275, 278-281 [citing Exhibits to Index 120-123 and Begin Decl. paragraphs authenticating exhibits].) Nevertheless, given the mandate that the Court liberally construe the opposition evidence and the discretion the Court has to consider the exhibits referenced in the cited paragraphs of the Molineaux Declaration, the Court has considered them. (*See, e.g., King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 437-438 [on summary judgment, court had discretion to consider portions of declaration not specifically cited in the separate statement].)

E. Issue Number 1 - Sex/Gender Discrimination in Violation of FEHA (4th C/A)

Government Code section 12940(a) prohibits an employer from discriminating based on sex, disability, and other protected characteristics "in compensation or in terms, conditions, or privileges of employment." (Govt. Code § 12940(a); *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 705.) Official actions by the employer of disparate treatment or demoting or terminating an employee based on protected characteristics such as sex or race, constitute unlawful discrimination under FEHA. (*Roby, supra*, 47 Cal.4th 686 at 705, 708.) Discrimination may also be based on a failure to promote. (*McDonnell Douglas Corp., supra*, 411 U.S. at 802; *Levy v. Regents of University of California* (1988) 199 Cal.App.3d 1334, 1347.)

"To state a prima facie case of gender, race, color, or sexual orientation discrimination under FEHA, a plaintiff must show that: '(1) he was a member of a protected class, (2) he was qualified for the

position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, . . . and (4) some other circumstance suggests discriminatory motive.' [Citation omitted.] Thus, a plaintiff must establish a causal nexus between the adverse employment action and his protected characteristic. [Citation omitted.] [¶] An employer may meet its initial burden in moving for summary judgment by presenting evidence that one or more elements of a prima facie case are lacking, or the employer acted for a legitimate, nondiscriminatory reason. [Citations omitted.] A legitimate, nondiscriminatory reason is one that is unrelated to unlawful bias and, if true, would preclude a discrimination finding. [Citation omitted.] '[I]f nondiscriminatory, [the employer's] true reasons need not necessarily have been wise or correct.' [Citation omitted.]" (*Martin v. Trustees of California State University* (2023) 97 Cal.App.5th 149, 161-162.) (See also *Guz v. Bechtel Nat. Inc.* (2000) 24 Cal. 4th 317, 355.) The parties do not dispute that Plaintiff is a member of a protected class based on her gender and that she did not receive the promotion to the position of EMS Division Chief, which can constitute an adverse employment action for purposes of an employment discrimination claim.

Defendants move for summary adjudication of the gender discrimination cause of action on three primary grounds. First, they contend that Plaintiff was not qualified for the EMS Division Chief position. Second, defendants contend they have demonstrated that the District had legitimate, nondiscriminatory reasons for not promoting Begin to the EMS Division Chief position. Third, they contend that the District did not engage preclude Plaintiff from participating in meetings and other work opportunities and initiatives based on her gender but for other, nondiscriminatory reasons.

Defendants have met their initial burden under the *McDonnell Douglas* analysis applied in the summary judgment context. They have presented evidence that since 2014, the EMS Division Chief position was held by a person who was a Battalion Chief, citing the District's Battalion Chief job descriptions. Though Maples did not meet the Battalion Chief job descriptions for the District as he never served in the District, they contend his history with the El Cerrito fire agency was equivalent in terms of years of fire agency service and rank. They have presented evidence through the Meyer Declaration of legitimate, nondiscriminatory reasons why Meyer selected James Selover, Jonas Aguiar, Lon Phares, and Lance Maples as EMS Division Chief, or Interim EMS Division Chief/Division Manager in the case of Maples.

Plaintiff has raised a triable issue of material fact as to whether Chief Meyer's decision not to promote Begin to the position of EMS Division Manager or EMS Division Chief was the result of gender discrimination, and whether the reasons given by Chief Meyer's for the decision were pretextual. Plaintiff makes two primary arguments in response. First, Plaintiff essentially argues that her qualifications and experience were better than Maples for the EMS Division Chief position because of her medical experience, medical qualifications, and prior work experience in management at hospitals, emergency rooms, and in global health, as well as her work experience during her active employment with the District. (Pl. Resp. to UMFs 29-31; AFs 119-126.) She disputes that the District required her to meet the Battalion Chief job description in order for her to be qualified to head the EMS Division, as set forth further below. (AFs 141-146, 165, 166, 158, 159, 162, 299, 301.) Second, she contends that the reasons given by the District for passing over Plaintiff for the head of the EMS Division were pretextual and that the true reasons were motivated by gender discrimination.

As to Plaintiff being qualified for the position, the totality of the evidence raises triable issues as to

the sufficiency of her qualifications. Both Chief Meyer and Deputy Chief Selover said that Plaintiff could get to a point where she could head the EMS Division. Their deposition testimony supports a reasonable inference that Plaintiff was qualified for the position (AFs 309-312); yet the District's position that she was not qualified and passed over because the position had "always" been held by a Battalion Chief since 2014, and she did not meet the qualifications of a Battalion Chief is undermined for the reasons stated below.

Unlike prior EMS Coordinators Swartzell and Meier, the District did not give Plaintiff a Captain designation. (AF 145.) If she was required to meet the qualifications of a Battalion Chief, it is not clear how she could ever "get there" since she did not hold a Captain designation with the District. Further, Maples has shown Maples did not meet the District's Battalion Chief job descriptions for lack of service with the District itself, and the District explicitly made the head of EMS Division a civilian position when it gave a civilian title to Maples of "manager." In that case, it is not clear why meeting a Battalion Chief job description was relevant to qualification for the position. The District's explanations for why plaintiff was unqualified for the position and why Maples was qualified for the position reflect shifting rationales that support an inference that the reasons she was not promoted were pretextual and may reflect gender discrimination.

The District's 2020 Core Review, which is Plaintiff's Exh. 134 and filed under the Conditional Sealing Order of April 20, 2026, was issued in December 2020, before Maples was appointed in July 2021. Meyer's admitted that he considered the head of the EMS Division role to be a civilian role and that he had discretion to appoint a "Chief" or a "Manager" and that he considered Maples to be a "manager" because of the civilian nature of the role. (AFs 171, 172, 287.) This evidence could support a reasonable inference that Meyer used the manager title because Maples did not meet the District's job description, which undermines the District's position that Plaintiff was not qualified because she did not meet the District's Battalion Chief job qualifications. (Id.; *see also* Pl. Resp. to UMFs 5-7.)

The recommendation in the 2020 Core Services Review was for the EMS Division to be "restructured away from Battalion Chiefs and toward civilian clinical staff with ALS or ER nursing backgrounds." (Pl. Resp. to UMF 19.) (*See also* AFs 165, 166.) The District's position that Plaintiff was unqualified because she did not meet the Battalion Chief job descriptions for the District is undermined by the fact that Maples who was appointed to head the EMS Division in July 2021 without any formal application or interview process also did not qualify under the District's Battalion Chief job descriptions since he had never worked for the District. (AFs 171, 172, 287.) It is undermined by other evidence of Maples' lack of qualification for the role based on the fact the fire agency where he worked did not operate an emergency services division with a fleet of ambulances and emergency medical personnel administering emergency medical services up to delivery of the patient to a hospital. (Pl. Resp. to UMF 26; AFs 148, 224, 305-308.)

Plaintiff has submitted evidence that beginning in April 2021, when Lon Phares was transitioned out of the EMS Division, there was no designated EMS Division Chief. Rather, Plaintiff was effectively performing that role beginning in April 2021, until Meyer reached out to Maples in July 2021 to ask him to assume a position as head of the EMS Division. (AFs 268, 284, 285.)

There is an inference from the evidence that appointment of Maples to head the EMS Division in July 2021 was inconsistent with the recommendations in the 2020 Core Services Review, which was issued

six months before Maples was appointed as Interim EMS Division Chief (or Manager), and after a period of three months in which there was no EMS Division Chief. (AF 268.) The recommendation issued in December 2020 was to eliminate the Battalion Chief as an intermediate supervisor and intermediate in the organizational hierarchy between the EMS Coordinator and the Deputy Chief. (AFs 165, 166; Pl. Exh. 134.) The fact the District had no EMS Division Chief beginning in April 2021 is consistent with that recommendation. (AFs 165, 166, 258.)

Plaintiff also raises triable issues as to whether the District's reasons for not promoting Plaintiff and for reaching out to Maples to assume the Interim EMS Division Chief or Manager position were pretextual based on the timing of when Meyer's decided to reach out to Maples to assume an interim position in the EMS Division. Plaintiff provides evidence that she was in effect acting as head of the EMS Division beginning in April 2021, that she complained in writing about Duggan's remarks at a June 15, 2021 meeting, and that shortly after that, on or about July 5, 2021, Meyer initiated contact with Maples to determine if Maples would be interested in assuming a role as head of the EMS Division without any solicitation or prior indication of any interest by Maples, and without any job posting, solicitation of applications, or interviews. (AFs 303, 304.)

Plaintiff also raises triable issues on pretext as she was never informed by Chief Meyer before she accepted the job as EMS Coordinator that she could not advance to head the EMS Division without a specified number of years of experience as a Captain or Battalion Chief in the District. (AFs 158, 159, 162, 321; Begin Decl. ¶ 6.) She asserts that Chief Meyer made a number of representations to her regarding her "opportunity for advancement" and his request that she "work for six to twelve months to get established." (Begin Decl. ¶ 5.) The Swartzell Declaration confirms that fire suppression experience was not necessary for the position he was given, which was EMS Quality Improvement Coordinator, and later EMS Coordinator. (Swartzell Decl. ¶¶ 6-10.) Swartzell's declaration indicates that the EMS Coordinator, Debbie Meier, also did not have fire suppression experience before he took over the position when Debbie Meier retired for medical reasons. (Swartzell Decl. ¶¶ 7, 8.) EMS Coordinator is the same position Begin declares she held when she was hired in September 2019 until she left the District in March 2023, but with a civilian role with no Captain designation. (Begin Decl. ¶ 1.)

As stated in *Martin, supra*, 97 Cal.App.5th 149, cited by the District, "evidence of pretext requires '[s]uch weaknesses, implausibilities, inconsistencies, incoherencies, or contradictions in the employer's proffered legitimate reasons for its action that a reasonable factfinder *could* rationally find them "unworthy of credence," [citation], and hence infer "that the employer did not act for the [asserted] nondiscriminatory reasons." [Citation, some internal quotation marks omitted.]' (*Id.* at 163 [italics in original, quoting *Hersant v. Department of Social Services* (1997) 57 Cal.App.4th 997, 1005].) The Court finds that Plaintiff has met that showing here. There is a reasonable inference that she was not promoted and was excluded from certain job responsibilities and meetings critical for her advancement, for reasons substantially related to her gender rather than legitimate, nondiscriminatory grounds.

The motion for summary adjudication of Issue Number One as to the fourth cause of action for gender discrimination is **denied**.

F. Issue Number 2 - Gender-Based Harassment (Hostile Work Environment) in Violation of FEHA (2nd C/A)

Government Code section 12940(j) makes sexual harassment of an employee by an employer unlawful. The statute provides that "Harassment of an employee . . . shall be unlawful if the entity, or its agents or supervisors, knows or should have known of this conduct and fails to take immediate and appropriate corrective action." (Govt. Code § 12940(j)(1).) Harassment includes: "(A) Verbal harassment, e.g., epithets, derogatory comments or slurs on a basis enumerated in the Act; [¶] (B) Physical harassment, e.g., assault, impeding or blocking movement, or any physical interference with normal work or movement, when directed at an individual on a basis enumerated in the Act; [¶] (C) Visual forms of harassment, e.g., derogatory posters, cartoons, or drawings on a basis enumerated in the Act; or [¶] (D) Sexual favors, e.g., unwanted sexual advances, which condition an employment benefit upon an exchange of sexual favors. (tit. 2 Cal. Code of Regs. § 11019(b)(2).)

FEHA does not impose a "civility code." (*Sheffield v. Los Angeles County Dept. of Social Services* (2003) 109 Cal.App.4th 153, 161.) The offensive behavior must relate to a protected category such as disability, gender or race, and must be sufficiently "severe or pervasive" so as to interfere with the employee's working conditions or work performance, creating an " 'objectively' " abusive work environment and one subjectively perceived by the employee as abusive. (*Id.* [emphasis added]; *Mokler v. County of Orange* (2007) Cal.App.4th 121, 145; *Lyle v. Warner Bros. Television Productions* (2006) 38 Cal.4th 264, 283.)

"Unlike FEHA discrimination claims, which address only explicit changes in the 'terms, conditions, or privileges of employment' (§ 12940, subd.(a)), harassment claims focus on 'situations in which the social environment of the workplace becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee.' [Citation omitted.] In other words, 'discrimination refers to bias in the exercise of official actions on behalf of the employer' whereas 'harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace.' [Citation omitted.]" (*Bailey v. San Francisco Dist. Attorneys' Office* (2024) 16 Cal.5th 611, 627.)

Plaintiff cites Government Code section 12923. By that statute, the Legislature "declare[d] its intent with regard to application of the laws about harassment contained in this part." (Govt. Code § 12923.) "[H]arassment creates a hostile, offensive, oppressive, or intimidating work environment and deprives victims of their statutory right to work in a place free of discrimination when the harassing conduct sufficiently offends, humiliates, distresses, or intrudes upon its victim, so as to disrupt the victim's emotional tranquility in the workplace, affect the victim's ability to perform the job as usual, or otherwise interfere with and undermine the victim's personal sense of well-being." (Govt. Code § 12923(a).) "A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." (Govt. Code § 12923(b).) "The existence of a hostile work environment depends upon the totality of the circumstances and a discriminatory remark, even if not made directly in the context of an employment decision or uttered by a nondecisionmaker, may be relevant, circumstantial evidence of discrimination." (Govt. Code § 12923(c).) The statute also states harassment cases are "rarely appropriate for disposition on summary judgment," though the Court agrees that does not

mean they can never be determined on summary judgment.

Defendants characterize Government Code section 12923 as merely a policy declaration that is not "necessarily" binding or controlling. Even if it is just considered persuasive, the Court in *Bailey, supra*, also cited by defendants, noted its holding that a single incident in which a racial epithet was used by a co-worker was sufficient to support a claim of harassment and was consistent with Government Code section 12923, and the Court reversed the summary judgment in favor of the defendant employer. Other courts have construed the enactment of Government Code section 12923 as reflecting the standards to be considered in assessing what constitutes "severe or pervasive" conduct sufficient to constitute harassment. (See *Martin v. Trustees of California State University* (2023) 97 Cal.App.5th 149, 170; *Carranza v. City of Los Angeles* (2025) 111 Cal.App.5th 388, 402 [rejecting City's contention that "the 'severe or pervasive' threshold is a 'high standard' requiring 'extreme' conduct and a 'hellish' workplace" in light of the addition of Government Code section 12923 in 2019].)

The Court in *Lyle, supra*, 38 Cal.4th 264, explained that "a hostile work environment sexual harassment claim is not established where a supervisor or coworker simply uses crude or inappropriate language in front of employees or draws a vulgar picture, without directing sexual innuendos or gender-related language toward a plaintiff or toward women in general. [Citations omitted.]" (*Id.* at 282.) The severity of a hostile sexual environment harassment case "should not be viewed too narrowly" and should consider from a reasonable person perspective a "careful consideration of the social context in which particular behavior occurs and is experienced by its target" and the fact that the "real social impact of workplace behavior" may not be "fully captured by a simple recitation of the words used or the physical acts performed." (*Id.* at 283 [citations, internal quotation marks omitted].) As to the pervasiveness of the harassment, "when the harassing conduct is not severe in the extreme, more than a few isolated incidents must have occurred to prove a claim based on working conditions. [Citations omitted.]" (*Id.*)

Plaintiff has raised triable issues of material fact as to whether Duggan's conduct created a hostile work environment that affected her work. There is evidence that Duggan's harassment of Plaintiff began with a text message exchange in June 2020 that could reasonably have been interpreted as a suggestion by Duggan that he might go to her home after a party, and continuing through 2021 with Duggan's weekly "gossip" sessions addressing sexual activities of other work colleagues, multiple sexually suggestive comments by Duggan made to Plaintiff at the November 2020 party, Duggan allegedly starting a rumor she was involved with Deputy Chief Selover, and Duggan's increasingly aggressive demeanor toward Plaintiff described at some length in her November 2021 summary of her conversation with Chief Meyer. (AF 316 and Pl. Exh. 141 [document under seal, so the Court does not describe the content].) Though one of the sexually explicit remarks at the November 2020 party was directed at Chief Meyer (a male), it was made in Plaintiff's presence and was arguably part of Duggan's ongoing sexually explicit commentary in Plaintiff's presence or directed toward her. (UMFs 35-41; AFs 193-219, 319.) The District also tries to suggest that Duggan's behavior was not a reflection of gender harassment, but rather that he could be rude and demeaning and make sexual comments to persons of both genders. (*But see* AF 226, 227, 232-240, 253-260, 263-265, 317.)

The Court finds the record in this case distinguishable from the record which the California Supreme Court found was insufficient to support a hostile work environment claim in *Lyle*, reversing the Court of Appeal reversal of a trial court order granting summary judgment for defendants. The Court

addressed a complaint by one of the writers on the show *Friends*, and it found the facts did not show sexual harassment. (*Lyle, supra*, 38 Cal.4th at 288-289.) The Court characterized the record as reflecting "a workplace where comedy writers were paid to create scripts highlighting adult-themed sexual humor and jokes, and where members of both sexes contributed and were exposed to the creative process spawning such humor and jokes. In this context, the defendant writers' nondirected sexual antics and sexual talk did not contribute to an environment in which women and men were treated disparately. Moreover, there was nothing to suggest defendants engaged in this particular behavior to make plaintiff uncomfortable or self-conscious, or to intimidate, ridicule, or insult her, as was the case in *Ocheltree*." (*Id.* at 288.) The District does not bear the characteristics of the writers' workshop on *Friends*. The evidence supports a reasonable inference Duggan's repeated sexually suggestive remarks directed toward Begin and/or made in her presence coupled with evidence of Duggan's aggressive remarks toward Begin was not merely behavior in which Plaintiff was treated the same as men in the District's work environment, or at least the facts and inferences to be drawn from the facts are sufficiently in dispute to warrant consideration by a jury and not a determination as a matter of law on this record. On this record, the Court cannot find as a matter of law that Duggan's sexual and other comments directed at Begin or made in her presence and his aggressive demeanor toward Begin were not severe or pervasive and did not result in an objectively and subjectively hostile work environment for Begin.

The motion for summary adjudication of Issue Number 2 as to the second cause of action for harassment based on hostile work environment is **denied**.

G. Issue Number 3 - Retaliation in Violation of FEHA (4th C/A)

FEHA makes it unlawful for an employer "to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part." (Govt. Code § 12940(h).) As to the District, a plaintiff can establish a prima facie claim of retaliation in violation of Government Code section 12940(h) by showing: "(1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. [Citations omitted.]" (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

An "adverse employment action" includes "the entire spectrum of employment actions that are reasonably likely to adversely and materially affect an employee's job performance or opportunity for advancement in his or her career." (*Yanowitz, supra*, 36 Cal.4th at 1053.) The adverse employment action must be one that can be viewed as "materially affecting the terms, conditions, or privileges of employment"; "the phrase 'terms, conditions, or privileges' of employment must be interpreted liberally and with a reasonable appreciation of the realities of the workplace in order to afford employees the appropriate and generous protection against employment discrimination that the FEHA was intended to provide." (*Id.* at 1053-1054.)

Plaintiff alleges that she suffered retaliation in the form of being passed over for a promotion and being excluded from various meetings, including the Standards of Cover Meetings in September 2021, after her complaints regarding her lack of promotion, which she contends was gender-based discrimination, and after she complained about Duggan's conduct as sexual harassment and a hostile

work environment. (2AC ¶¶ 21-35, 38, 40-46, 54-58, 62-64, 71-76.)

Plaintiff has raised a triable issue as to whether some of her job responsibilities were transferred to Lon Phares in February 2021 in retaliation for her complaints in November 2020 and December 2020 about conduct by Duggan. (Pl. Resp. to UMFs 23, 24; AFs 258-260, 262-269, 273-275, 284, 285.) As detailed more fully above, she has also raised triable issues as to whether in July 2021, Meyer made an unsolicited proposal to Maples to assume the head of the EMS Division after Plaintiff complained about Duggan's improper remarks at a meeting on June 15, 2021 even though she had been effectively acting head of the EMS Division since April 2021 when Lon Phares transitioned out of the EMS Division, and when the 2020 Core Review Services recommended that the organizational structure of the EMS Division eliminate a Battalion Chief as an intermediate supervisor rather than the EMS Coordinator reporting directing to the Deputy Chief. (*See, e.g.*, Pl. Resp. to UMFs 23, 24; AFs 165, 166, 262-269, 276, 277.) Plaintiff has also raised triable issues on the retaliation cause of action as to whether Plaintiff's exclusion from key meetings was retaliation for her protected activity based on her complaints to the District both when Lon Phares took over initiatives she had been working on in February 2021, after she complained in November 2020 and December 2020 about Duggan's alleged harassment, and after Maples was fairly abruptly designated as Interim EMS Division Chief (or Manager) and attended, among other things, the Standard of Cover Meetings after she complained again about Duggan's rude and demeaning conduct toward her on June 15, 2021.

The motion for summary adjudication of Issue Number 3, the first cause of action for retaliation, is **denied**.

H. Issue Number 4 – Failure to Prevent Discrimination and Harassment – (3rd C/A)

It is an unlawful employment practice under FEHA for an employer to fail to prevent discrimination or harassment from occurring. (Govt. Code § 12940(k).) As such, the claim is a derivative claim; the predicate for a failure to prevent claim is the existence of a claim for discrimination or harassment sufficient to meet the standards of those claims under FEHA. (*Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1317-1318.) Plaintiff's claim for failure to prevent is based on her suffering both harassment based on a hostile work environment and gender discrimination in her lack of promotion and exclusion from work meetings. (2AC ¶¶ 13-48, 54-65, 81-86, 89, 91.)

The Court has concluded there is sufficient evidence to support Plaintiff's gender discrimination claim for the reasons stated above, which supports this derivative claim for failure to prevent discrimination.

For the reasons set forth, the Court has also concluded that Plaintiff has raised triable issues of fact regarding both her discrimination and harassment claims. Plaintiff made multiple complaints about Duggan in November and December 2020. Meyer admitted he did nothing in response to the November 2020 complaint, claiming it was merely "banter." (AF 319.) Plaintiff asserts Duggan's sexually related comments continued to her at least weekly continued in 2020 and 2021, and that, although he was no longer her formal supervisor as of March 2020, she continued to have to interact with him as part of her job duties. (Pl. Resp. to UMFs 17, 41 [Begin asking to discuss training issue with Duggan].)

The motion for summary adjudication of Issue Number 4 as to the third cause of action for failure to

prevent discrimination and harassment is **denied**.

Plaintiff's Evidentiary Objections to Meyer Declaration

Obj. Nos. 1-9 – **Overruled**.

Defendants' Evidentiary Objections

The Court only rules on those evidentiary objections the Court deems material to the determination of the motion. (Code Civ. Proc. § 437c(q).)

A. Objections to Begin Declaration

Obj. Nos. 1-7, 11, 13, 16, 17, 21, 29, 30 - **Overruled**. As to Chief Meyer's alleged statements to Begin, they are admissible as admissions of a party opponent, as the head of the District. (Evid. Code § 1220.) As to paragraph 21, the Court accepts Begin's statements as her beliefs regarding the incidents and explanations for her leave and resignation, not for the truth of the underlying facts.

Obj. No. 10 – **Sustained in part** as to the last sentence.

Obj. No. 14 – **Overruled** except sustained as to a portion of the last sentence regarding Meyer taking "no action against Duggan as a result of the evening." The Court admits Begin's statement concerning the "message" Chief Meyer was conveying not as true but as Begin's interpretation of the statement which could explain acts or omissions of Begin subsequent to the discussion.

Obj. No. 15 – **Sustained in part** except as to the last three sentences for relevance and speculation as to the last sentence.

Obj. No. 18 – **Overruled** except as to the last sentence.

Obj. No. 19 – **Sustained**.

B. Objections to Swartzell Declaration

Obj. Nos. 31, 34, 35, 36, 37, 39, 40, 41, 42, 43, 45, 47 – **Overruled**.

Obj. Nos. 48-51 – **Sustained**.

C. Objections to Word Declaration

Obj. No. 52 – **Sustained in part** as to the first sentence; **overruled** as to the second sentence.

Obj. Nos. 53, 62, 63 – **Overruled**.

Obj. No. 54 – **Sustained in part** as to the second sentence; **overruled** as to the first sentence.

Obj. Nos. 55-60, 64 – **Sustained**.

Obj. No. 61 – **Sustained**, except as to first sentence and last sentence.

D. Objections to Plaintiff's RJN

Plaintiff's Response to the UMFs in the SS and her AFs do not refer to RJN Exhibits 62-86, and the Court has not considered them. The Court has no need to rule on Objection Nos. as a result.

As to RJN Exhibits 50-61 and 87-89, the Court **sustains** defendants' Objection Nos. 65-76 and 102-104 to those documents on the ground of lack of authentication. (Evid. Code §§ 453(b), 1400, 1401(a).) "Points and authorities are not presented under penalty of perjury. Matters set forth in points and authorities are not evidence. [Citation omitted.]" (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal. App. 5th 574, 590.) (*See also In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515 ["The allegations of a brief are not evidence, and a brief is not a sworn document."].) The request for judicial notice is argument, not evidence by a declarant with personal knowledge attesting to the facts necessary to authenticate the documents. (*See, e.g., Wassmann v. South Orange County Community College Dist.* (2018) 24 Cal. App. 5th 825, 842 [declining to take judicial notice of records in part based on lack of authentication].)

6. 9:00 AM CASE NUMBER: C23-01274
CASE NAME: NATASHA WINDOM VS. SKSS ENTERPRISES INC.

***HEARING ON MOTION IN RE: COMPLIANCE HEARING**
(MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT GRANTED ON 3/4/26)
FILED BY:

TENTATIVE RULING:

Summary

This compliance hearing was scheduled pursuant to the Court's order for final approval and judgment of the class action settlement filed on March 18, 2026.

On March 4, 2026, the Court ordered Plaintiff's counsel to submit a compliance statement one week before this compliance hearing date. No compliance statement was filed by the Parties. Five percent (5%) of the attorney's fees were withheld by the claims administrator. Those fees will continue to be held until Counsel files a compliance statement. Plaintiff's Counsel is ordered to appear on June 3, 2026 to show cause as to why they should not be held in contempt for failing to file a compliance statement.

7. 9:00 AM CASE NUMBER: C24-00719
CASE NAME: EMILY CROSS VS. TARIM HOLDINGS, LLC

***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT**
FILED BY:

***TENTATIVE RULING**

The Parties are ordered to appear either in person or remotely. This motion was heard on April 29, 2026 and continued to allow the parties to meet and confer regarding whether defense counsel would accept service of Plaintiff's Second Amended Complaint.

8. 9:00 AM CASE NUMBER: C24-01054

CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP

**HEARING ON SUMMARY MOTION DEPT 16 NOTE: MSJ PAPERWORK TO BE FILED ON 12/1
FILED BY:**

TENTATIVE RULING:

This Tentative Ruling applies to Lines 8, 9, and 10. On May 26, 2026, the Parties represented to the Court that they have reached a settlement in principle and have requested to take this hearing off calendar. No appearance is required on June 3, 2026.

The Court sets an Order to Show Cause re Dismissal for September 28, 2026 at 8:30 a.m. to follow-up on the settlement. That date may be vacated by stipulation, or the by the filing of a request for dismissal.

9. 9:00 AM CASE NUMBER: C24-01054

CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP

***HEARING ON MOTION IN RE: SEAL UNREDACTED MOTION FOR SUMMARY ADJUDICATION**

FILED BY: SLIVER'S, LLC

TENTATIVE RULING:

See Line 8

10. 9:00 AM CASE NUMBER: C24-01054

CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP

***HEARING ON MOTION IN RE: SEAL DEFENDANTS' UN-REDACTED MOTION FOR SUMMARY
JUDGMENT (ADVANCED FROM 8/19/26)**

FILED BY: SLIVER'S, LLC

TENTATIVE RULING:

See Line 8.

11. 9:00 AM CASE NUMBER: C24-01877

CASE NAME: ZACHARY MINOR VS. CRAIG HOWARD

***HEARING ON MOTION IN RE: FOR EVIDENTIARY SANCTIONS AND TO EXCLUDE IMPROPERLY
WITHHELD "SETTLEMOIR FINANCIALS"**

FILED BY: MINOR, ZACHARY

TENTATIVE RULING:

Summary

Plaintiffs Zachary and Angela Minor ("Plaintiff") filed a Motion in Limine for Evidentiary Sanctions and to Exclude Improperly Withheld "Settlemoirs Financials" against Defendant Craig Howard. This motion is **dismissed** without prejudice as premature and this hearing is **vacated**.. The Court has not set a trial date in this case and it is improper to hear a motion in limine at this stage of the proceedings. Moreover, there is no proof of service form evidencing that Defendant was served with this Motion.

Plaintiff's "reply brief" mentioned that plaintiffs relied on legal interpretation from court staff pertaining to the filing of this motion. Plaintiffs are admonished that they should seek legal advice

from a licensed attorney and not from court staff. Plaintiffs may bring this motion pursuant to the Court's pre-trial orders when Motions in Limine are requested by the Court.

No appearance is required at the hearing on June 3, 2026.

12. 9:00 AM CASE NUMBER: C25-00261
CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**

FILED BY:

TENTATIVE RULING:

Summary

Defendant Ramanujan Group LLC's ("Defendant") counsel, Kutak Rock LLP, and Brian J. Wagner, Esq.'s ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Defendant ("Motion") on February 3, 2026. The Motion is **granted** as set forth herein. No appearance is required on June 3, 2026.

Background

Plaintiff Kiki Brows alleges a breach of contract, fraud and reliance causes of action by Defendant related to a lease of business premises located at 3570 Blackhawk Plaza Cir., C-04A, Danville, California. Withdrawing Counsel filed a Motion to Be Relieved as Counsel for Defendant, supported by his declaration claiming that irreconcilable differences and a breakdown of attorney client relationship has occurred. Withdrawing Counsel can no longer represent Defendant.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. The Court acknowledges that the prejudice to Defendant is minimal, as there is ample time for Defendant to retain trial counsel. No trial date has been set and no dispositive motions are currently on calendar.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on February 3, 2026. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. The Court schedules a Case Management Conference for December 1, 2026 at 8:30 a.m. Withdrawing Counsel is ordered to provide notice to Plaintiff of this CMC, and to inform Plaintiff that he/they are ordered to appear.
5. Withdrawing counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).
6. No appearance is required on June 3, 2026.

13. 9:00 AM CASE NUMBER: C25-00387

CASE NAME: MAYKELIN REYES VS. M & M BAKERY PRODUCTS, INC.

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT AGREEMENT AND CLASS NOTICE**

FILED BY: REYES, MAYKELIN MENDOZA

TENTATIVE RULING:

Summary

Plaintiff Maykelin M. Reyes' Motion for Preliminary Approval of Settlement is **granted** as set forth herein. No appearance is required on June 3, 2026.

Background and Settlement Terms

This case involves a wage-and-hour class action lawsuit filed by Plaintiff Maykelin Mendoza Reyes ("Plaintiff") against Defendant M & M Bakery Products, Inc. ("Defendant") The Plaintiff is seeking preliminary approval of a proposed \$365,000 settlement to resolve claims related to alleged violations of California labor laws, including the California Private Attorneys General Act of 2004 (PAGA). The settlement was reached after extensive investigation, informal discovery, and arm's-length negotiations between the parties, which were facilitated through mediation by experienced neutral mediator Deborah Crandall Saxe, Esq.

The proposed settlement would provide monetary payments to approximately 236 Class Members who collectively worked an estimated total of 16,000 workweeks during the Class Period (February 7, 2021, to August 21, 2025). Additionally, 115 Aggrieved Employees under PAGA who worked an estimated total of 3,556 pay periods during the PAGA Period (January 19, 2024, to August 21, 2025) would receive payments. The settlement is structured as non-reversionary, meaning that under no circumstances will any of the funds be reverted to the Defendant.

The \$365,000 gross settlement amount is all-inclusive and excludes Defendant's employer taxes, which will be paid separately. From this amount, \$10,000 is allocated for PAGA penalties (35% to Aggrieved Employees and 65% to the Labor and Workforce Development Agency). The remaining Net Settlement Amount will be distributed after deducting payments for the Class Representative Service

Payment (up to \$7,500), Attorneys' Fees (\$121,666.67 or 1/3 of the Gross Settlement), Litigation Expenses (not to exceed \$25,000), and Administrator Expenses to ILYM Group, Inc. (not to exceed \$6,650).

Individual Class Payments will be calculated based on each Participating Class Member's pro rata share of the Net Settlement Amount according to the number of Workweeks worked during the Class Period. For tax purposes, these payments will be allocated with 33.33% designated for settlement of wage claims and 66.67% for settlement of claims for interest and penalties. Class Counsel has submitted the proposed Settlement Agreement to the Labor and Workforce Development Agency and believes the settlement is fair, reasonable, and adequate under California law.

Analyses

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$7,500 for the Plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are

discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department or Court clerk. No appearance is required on June 3, 2026.

Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.

Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b). Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.

14. 9:00 AM CASE NUMBER: C25-00694
CASE NAME: ELIZABETH HILAMAN VS. MCDONALD'S USA, LLC
HEARING ON SUMMARY MOTION FILED BY DEFT MCDONALDS CORPORATION
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant McDonald's Corporation's Motion for Summary Judgment, or in the alternative, Summary Adjudication ("MSJ").

Defendant McDonald's Corporation's MSJ is **denied as moot**, as explained below.

Allegations of the Complaint

On September 11, 2023, Plaintiff went through the drive-thru of a McDonald's restaurant located at 4440 Lone Tree Way, Antioch, California (the "Store"). (§§ 7, 22.) She purchased a hot tea. (§ 22.) As the tea was being passed to Plaintiff in her vehicle, the lid popped off the cup. (*Ibid.*) The hot liquid spilled onto Plaintiff's lap, causing burns. (*Ibid.*)

Plaintiff filed her complaint on March 12, 2025, against Defendants McDonald's Corporation and Bay Area Restaurant Management Corporation ("BARM"). McDonald's is alleged (on information and belief) to own, operated, manage, and control the Store. (§ 7.) It is alleged that BARM is a franchisee of Defendant McDonalds, and that it also owned, operated, managed, and controlled the Store. (§§ 8-9.)

Based on the above, Plaintiff alleges two causes of action against moving Defendant McDonalds Corporation: (1) negligence, and (2) products liability.

Initial Consideration – Lack of Filed Opposition

Defendant McDonald's filed its MSJ on February 9, 2026 – the same date Defendant BARM filed its own separate MSJ.

On May 14, 2026, the Court received several documents from Plaintiff. Two documents were **filed** with the Court: (1) Plaintiff's Opposition to Defendant's Motion for Summary Judgment, or in the Alternative, Summary Adjudication; Memorandum of Points and Authorities; **Redacted** Declaration of Shantel Yaghobbian, Esq. and **Redacted** Exhibits Pursuant to Protective Order; and (2) Plaintiff's Separate Statement in Opposition to Defendant's Motion for Summary Judgment; Filed Pursuant to Protective Order. (emphasis added.)

Two other documents were **lodged** with the Court: (1) Plaintiff's Opposition to Defendant's Motion for Summary Judgment, or in the Alternative, Summary Adjudication; Memorandum of Points and Authorities; Declaration of Shantel Yaghobbian and Exhibits; Conditionally Filed Under Seal Pursuant to Protective Order; and (2) Plaintiff's Separate Statement in Opposition to Defendant's Motion for Summary Judgment; Conditionally Filed Under Seal Pursuant to Protective Order.

All the above documents indicate that they are related to Plaintiff's Opposition to "Defendant's" – singular – MSJ. They do not, however, indicate which Defendant's MSJ they are directed toward. The introduction of each memorandum begins by stating that the "Defendant asks this Court..." to grant their MSJ. The Conclusions also vaguely ask that the Court "deny Defendant's" MSJ – without indicating which Defendant's MSJ is being addressed.

In reviewing the **filed** documents, the Court noted that the opposition to the Separate Statement indicating that Plaintiff submitted the "following Separate Statement in Opposition to Defendant Bay Area Restaurant Management Corporation's Motion for Summary Judgment." (All caps removed.) A review of the opposition to the Separate Statement **lodged** with the Court has the exact same statement. Both documents also address the 24 UMFs submitted by BARM. It is worth noting that McDonald's Separate Statement only included 22 UMFs – most of which are different from those in BARM's Separate Statement.

The Court took the above to indicate that Plaintiff was only opposing **one** of the MSJs – that filed by BARM. As Plaintiff did not file a motion to file documents under seal, it appeared she was attempting to comply with California Rule of Court 2.551 by lodging documents conditionally under seal.

Rule 2.551 states, in pertinent part:

(A) A party that files or intends to file with the court, for the purposes of adjudication or to use at trial, records produced in discovery that are subject to a confidentiality agreement or protective order, and does not intend to request to have the records sealed, must:

(i) Lodge the unredacted records subject to the confidentiality agreement or protective order and any pleadings, memorandums, declarations, and other documents that disclose the contents of the records, in the manner stated in (d);

(ii) File copies of the documents in (i) that are redacted so that they do not disclose

the contents of the records that are subject to the confidentiality agreement or protective order; and

(iii) Give written notice to the party that produced the records that the records and the other documents lodged under (i) will be placed in the public court file unless that party files a timely motion or application to seal the records under this rule.

As the Rule makes clear, a party must both **lodge** unredacted records (so the Court has access to the complete documents) and **file** redacted copies of those same documents. Notice to the other side is also required – and it is worth noting that the Court has no evidence that Plaintiff provided Defendant McDonald’s with the written notice required by 2.551 (3)(A)(iii) above.

When the Court reviewed the lodged version of the documents – they appeared to track the filed opposition to BARM’s MSJ. As such, the Court initially reviewed BARM’s MSJ as being opposed (see line 15), and McDonald’s MSJ as unopposed (see below.)

McDonald’s Reply indicates they were likewise confused by Plaintiff’s submissions. McDonald’s does, however, indicate that Plaintiff did serve two separate Opposition memoranda – while not differentiating between them (*i.e.* neither title, nor the body of either ‘Opposition’ indicate as to which Defendant’s MSJ it is directed.) McDonald’s indicates that the opposition memoranda “were nearly identical but for a few sentences.” (Reply at 2: 8-9.) This appears to relate to the filed document and the lodged document.

McDonald’s argues (in part) that Plaintiff has failed to properly oppose its MSJ because she failed to file an opposition separate statement. Not only did Plaintiff fail to file (or lodge) an opposition separate statement in response to McDonald’s MSJ, but she also failed to **file** any opposition papers. An opposition memorandum is also a required document when opposing an MSJ. (Cal. R. Ct. 3.1350 (e).) As outlined above, Plaintiff filed her opposition to BARM’s MSJ along with her opposition separate statement. There is no document **filed** with the Court that consists of an opposition memorandum in response to McDonald’s MSJ.

The above discussion is moot based on the Plaintiff’s subsequent filing of Amendment to Complaint. However, Plaintiff is cautioned that she must abide by the Code and Rules when submitting documents to the Court and is required to **file** documents it wants the Court to consider. Documents not **filed** with the Court may be disregarded in the future. Also, making sure the title of the document properly identifies **which** defendant’s motion is being opposed will assist everyone.

Analysis

On May 15, 2026, Plaintiff filed an Amendment to Complaint wherein she indicated that she ‘incorrectly named’ McDonald’s Corporation in the Complaint. She then indicates that she discovered the ‘true name of the defendant to be’ McDonald’s USA, LLC and therefore “amends the complaint by substituting the true name [McDonald’s USA, LLC] for the incorrect name [McDonald’s Corporation] wherever it appears in the complaint.” In essence, Plaintiff has dropped her case against moving Defendant McDonald’s Corporation.

"An ‘amended’ complaint supersedes all prior complaints. . . . The original ceases to ‘perform any function as a pleading.’” [Citation omitted.]” (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215

[quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884].) “Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint. [Citation.]” (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 [motion for summary adjudication moot based on filing of amended complaint].) “The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment.” (*Ibid.*)

Conclusion

Based on the above, Defendant McDonald’s Corporation’s Motion for Summary Judgment is **denied as moot**. Plaintiff no longer has any claims against McDonald’s Corporation as of the filing of the of the Amendment to Complaint, which as approved by this Court on May 15, 2026.

15. 9:00 AM CASE NUMBER: C25-00694
CASE NAME: ELIZABETH HILAMAN VS. MCDONALD'S USA, LLC
HEARING ON SUMMARY MOTION FILED BY DEFT BAY AREA RESTAURANT MANAGEMENT CORPORATION
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Bay Area Restaurant Management Corporation’s Motion for Summary Judgment, or in the alternative, Summary Adjudication (“MSJ”).

Allegations of the Complaint

On September 11, 2023, Plaintiff went through the drive-thru of a McDonald’s restaurant located at 4440 Lone Tree Way, Antioch, California (the “Store”). (§§ 7, 22.) She purchased a hot tea. (§ 22.) As the tea was being passed to Plaintiff in her vehicle, the lid popped off the cup. (*Ibid.*) The hot liquid spilled onto Plaintiff’s lap, causing burns. (*Ibid.*)

Plaintiff filed her complaint on March 12, 2025, against Defendants McDonald’s Corporation and Bay Area Restaurant Management Corporation (“BARM”). It is alleged that BARM is a franchisee of Defendant McDonald’s, and that it owned, operated, managed, and controlled the Store at all relevant times. (§§ 8-9.)

Based on the above, Plaintiff alleges two causes of action against moving Defendant BARM: (1) negligence, and (2) products liability.

Standard for Continuance of Summary Judgment

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” (Code Civ. Proc. § 437c(h).) If the showing required under Code of Civil Procedure § 437c(h) is made, relief is nearly mandated because the stakes in a summary judgment motion are so high. (*Chavez v. 24 Hour Fitness USA, Inc.* (2015) 238 Cal.App.4th 632, 643; *Insalaco v. Hope Lutheran Church of West Contra*

Costa County (2020) 49 Cal. App. 5th 506, 517, 519 [even if there is lack of diligence by the party seeking the continuance, “the court’s discretion to deny a continuance is strictly limited.”].)

The declaration in support of a continuance under Code of Civil Procedure section 437c(h) must demonstrate “(1) the facts to be obtained are essential to opposing the motion, (2) there is reason to believe such facts may exist, and (3) the reasons why additional time is needed to obtain these facts. [Citations omitted.] The reason for this ‘exacting requirement’ [citation omitted] is to prevent ‘every unprepared party who simply files a declaration stating that unspecified essential facts may exist’ [citation omitted] from using the statute ‘as a device to get an automatic continuance’ [citation omitted].” (*Chavez v. 24 Hour Fitness USA, Inc.*, *supra*, 238 Cal.App.4th at 643 [citing and quoting *Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 715, 716].) Even if the opposing party fails to make the showing necessary for a continuance under Code of Civil Procedure section 437c(h), the Court may grant a continuance in its discretion if good cause is shown. (*Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 716.)

Analysis

This matter pertains the passing of a hot tea from a restaurant employee to Plaintiff wherein the hot tea ended up spilling on Plaintiff and injuring her. The main theory of Plaintiff’s case relates to the preparation of the hot tea, including the way the cup and lid were put onto the cup and how the beverage was passed to Plaintiff. It appears that this transaction included, essentially, two people: Plaintiff and Marleny Majano – the employee that prepared and handed the beverage to Plaintiff.

Plaintiff’s counsel provides a declaration indicating that they have ‘acted diligently in pursuing discovery necessary’ to oppose BARM’s MSJ. (Yaghoobian Decl. ¶ 12.) This included noticing the deposition of Ms. Majano. (*Id.* ¶ 13.) However, as of the time the opposition was filed, that deposition had not taken place. (*Id.* ¶ 15.) As noted by Plaintiff, “Ms. Majano is the only known percipient witness with firsthand knowledge regarding the actual preparation and handoff of Plaintiff’s beverage.” (*Id.* ¶ 16.)

Defendant BARM has taken the deposition of Plaintiff and includes portions of her testimony as evidence to support its MSJ. Defendant also provides a declaration of Ms. Majano to support its motion. As noted above, Plaintiff has not had an opportunity, however, to depose Ms. Majano to explore her memory of what happened that day – or to scrutinize what is included in her declaration.

Plaintiff’s counsel explains in detail why Ms. Majano’s “testimony is essential” to Plaintiff’s case. (Yaghoobian Decl. ¶ 17.) This appears especially true given that she is the sole person (other than Plaintiff) to have first-hand knowledge of the incident. Given that Defendant submits a declaration from her in support of its motion, fairness and due process dictate that Plaintiff be given an opportunity to depose Ms. Mejano before ruling on Defendant’s MSJ.

Plaintiff’s counsel also indicates that discovery is incomplete regarding Defendant’s “training materials and operational procedures,” which may include information relevant to her Plaintiff’s claims. (*Id.* ¶¶ 19-23.) Other areas of discovery, including BARM’s person most knowledgeable deposition have also not been completed. (*Id.* ¶¶ 24-37.)

While the Court cannot, and will not at this time, determine that all the items identified by Plaintiff

are necessary to be completed before Plaintiff can properly oppose the MSJ, Plaintiff is entitled to additional discovery – including the deposition of Ms. Majano – before the Court can properly rule on Defendant’s MSJ.

On Reply, Defendant BARM argues that Plaintiff has not been diligent in conducting discovery and that it is her “own failure of due diligence that leaves her lacking evidence and wanting discovery.” (Reply at 1:26-27.) It outlines the supposed deficiencies and lack of diligence in its reply. (Reply at e.g. 2:6-14.) It does not, however, provide any evidence to support these arguments.

“Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) “The allegations of a brief are not evidence and a brief is not a sworn document.” (*In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515.)

If Defendant contends that Plaintiff’s discovery conduct was lacking, it should provide evidence of the alleged failures to properly and efficiently conduct discovery. For example, providing copies of Plaintiff’s discovery requests showing the lack of material requests, declarations confirming Plaintiff failed to notice relevant depositions, or copies of meet and confer letters explaining the delay. Defendant proclaims the Plaintiff includes “no dates” and “no emails” to support her plea for continuance. Plaintiff’s counsel does, however, provide a declaration indicating that they were diligent in conducting discovery and outlining the issues they believe are still outstanding. Defendant fails to provide any dates or emails – or any declaration – supporting its position.

While lack of diligent can support the denial of a request for additional time to conduct discovery, “when a party submits an affidavit demonstrating that facts essential to justify opposition may exist but have not been presented to the court because the party has not been diligent in searching for the facts through discovery, the court’s discretion to deny a continuance is strictly limited.” (*Insalaco*, supra, 49 Cal.App.5th at 519.) Where counsel states with particularity the necessary discovery, “the policy favoring disposition on the merits outweighs the competing policy favoring judicial efficiency.” (*Id.* at 520 quoting *Bahl v Bank of America* (2001) 89 Cal.App.4th 389, 398.)

Other factors that “militate[] in favor of a continuance in this case” include that “[n]o trial date ha[s] been set and discovery remain[s] open,” and that no “prior continuances had been sought or granted.” (*Ibid.*)

As the Court finds Plaintiff has met the requirements of section 437c (h), it “**shall** deny the motion, order a continuance to permit ... discovery to be had, or make any other order as may be just.” (Code Civ. Proc. § 437c (h), emphasis added.) Even if the opposing party fails to make the showing necessary for a continuance under Code of Civil Procedure section 437c(h), the Court may grant a continuance in its discretion if good cause is shown. (*Lerma*, supra, 120 Cal.App.4th at 716.)

Given that this matter is still relatively new, being just over a year old, the Court will deny Defendant’s motion without prejudice to Defendant filing a new motion at a later date. This will ensure that both parties have all the necessary evidence before moving forward with a dispositive motion. The Court wants to prevent a situation where Defendant might want to include additional evidence obtained during the continued discovery and then be faced with supplemental or amended motions.

Evidentiary Issues

Defendant filed a Response and Evidentiary Objections to Plaintiff's Additional Material Facts along with its Reply memorandum. As the Court is denying Defendant's MSJ to allow for additional discovery, it need not address the arguments related to the propriety or impropriety of Plaintiff's Response to the Separate Statement.

As for the objections set forth therein, the Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

All written objections must be contained in a *separate* document from the reply memorandum, and must conform to the format set forth in CRC 3.1354(b). The party submitting the written objections "must submit with the objections a proposed order." (CRC 3.1354(c).) Defendant attempts to include objections within its Response to the Separate Statement. The Court declines to consider objections not filed separately in accordance with the California Rules of Court. (*Hodjat v. State Farm Mutual Auto. Ins. Co.* (2012) 211 Cal.App.4th 1, 8-9.) The Court can overrule all of a party's objections on the grounds that they failed to comply with the requirements of Rule 3.1354. (*Schmidt v. Citibank, N.A.* (2018) 28 Cal.App.5th 1109, 1118.)

Conclusion

Defendant Bay Area Restaurant Management Corporation's Motion for Summary Judgment, or in the alternative, Summary Adjudication is **denied without prejudice**. Defendant is authorized to file a new Motion for Summary Judgment, or in the alternative, Summary Adjudication on these same issues once sufficient discovery has been completed by Plaintiff – including the deposition of Ms. Majano.

16. 9:00 AM CASE NUMBER: C25-02162
CASE NAME: PRO-MAX BUILDERS, INC. VS. EXPERT NATIONAL BUILDERS, INC.
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND DEFAULT JUDGMENT
FILED BY: MENLO WESTRIDGE AFFORDABLE PARTNERS, LP
TENTATIVE RULING:

Introduction

Before the Court is Defendant Menlo Westridge Affordable Partner, LP's ("Melo Westridge") Motion to Set Aside Default.

The Court **grants Defendant Menlo Westridge Affordable Partner, LP's Motion to Set Aside Default.**

Procedural Background

This action and the related actions pending in this Court all arise from a construction project located in Richmond, California. In addition to this action, the related actions are: (1) *N Power Electric, Inc. v. Expert National Builders, Inc.*, Contra Costa Super. Ct. Case No. C25-03101; (2) *Nieto Consulting LLC v. ProMax Builders, Inc. et al.*, Contra Costa Super. Ct. Case No. C25-02691; and (3) *Guillen's Specialty Plumbing v. Expert National Builders, et al.*, Contra Costa Super. Ct. Case No. C26-00123. (Suri Decl. ¶ 4.) Menlo Westridge has appeared in the N Power Electric, Inc. case, has not been served in Nieto Consulting LLC case, and was served last week with the Guillen's Specialty Plumbing case. (Id.) Menlo

Westridge intends to respond to the Guillen’s Specialty Plumbing case, and to the Nieto Consulting case when served. (Id.)

This action was filed on July 29, 2025. Plaintiff attempted to serve Defendant Menlo Westridge by Notice and Acknowledgement of Receipt in early August 2025 which included the Complaint, Summons, and other required forms by mail, but Plaintiff’s counsel received no response or confirmation to the Notice and Acknowledgement of Receipt packages. (Davidson Decl. ¶ 4.)

Nearly three months later, on October 23, 2025, Karan Suri, principal of the general partner of Menlo Westridge, received an email from Menlo Westridge’s corporate agent containing a hyperlink. (Suri Decl. ¶¶ 2-3.) Mr. Suri is not an attorney. (Id. ¶ 2.) Due to a mistaken assumption that the email link was duplicative or non-substantive, Mr. Suri did not open the link and therefore did not access the served pleading. (Id. ¶¶ 2-3.)

Defendant Menlo Westridge’s counsel left voicemails to Plaintiff’s counsel, once in December and once in January expressly asking that Plaintiff stipulate to set aside the default so that Defendant Menlo Westridge could answer. Defendant Menlo Westridge’s counsel received no response. Both voicemails were left before Plaintiff sought its Default Judgment.

As a result, Defendant did not respond timely to that pleading. (Suri Decl. ¶¶ 2-3.) The Court entered default on November 25, 2025, followed by a default judgment on January 26, 2026.

Legal Standard for CCP § 473

It has long been established that “[the policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” (*Weitz v. Yankosky* (1966) 63 Cal.2d 849, 854-855.) Thus, “the provisions of section 473 ... are to be liberally construed and sound policy favors the determination of actions on their merits.” [Citation.]’ [Citation.] ‘[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.’” (*Shapell SoCal Rental Properties, LLC v. Chico’s FAS, Inc.* (2022) 85 Cal.App.5th 198, 212.) “Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted. [Citations.] In such situations “very slight evidence will be required to justify a court in setting aside the default.” [Citations.]” (*Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 695.) “Prejudice is one of the factors the trial court may properly consider in determining whether the moving party acted diligently.” (*Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 740.)

California Code of Civil Procedure section 473 (b) “... includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) “Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute.” (*Ibid.*)

Discretionary Provision

The ‘discretionary’ provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against

him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

While it is true that the “statute’s ‘broad remedial provisions’ are to be ‘liberally applied to carry out the policy of permitted trial on the merits,’ the party seeking relief “bears the burden of proof in establishing a right to relief.” (*Hopkins v. Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410 citations omitted.) “The burden is a ‘double one: the moving party must show a satisfactory excuse for his default, and he must show diligence in making the motion after discovery of the default.’” (*Ibid.* internal quotations omitted.) The party must identify the specific facts which “demonstrate ‘that due to *some mistake*, either of fact or law, of himself or of his counsel, or through *some inadvertence*, surprise or neglect which may properly be considered excusable, the judgment or order from which he seeks relief should be reversed.” (*Ibid.*) Courts do not relieve litigants from the effects of mere carelessness. (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 922.)

Analysis

Mistake

A mistake permitting setting aside of a default takes two forms, mistake of fact or mistake of law. "A mistake of fact is when a person understands the facts to be other than they are; a mistake of law is when a person knows the facts as they really are but has a mistaken belief as to the legal consequences of those facts." (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921.)

The "surprise" referred to in section 473 is defined to be some "condition or situation in which a party to a cause is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against." (*Miller v. Lee* (1942) 52 Cal.App.2d 10, 16.) The "excusable neglect" referred to in the section is that neglect which might have been the act of a reasonably prudent person under the same circumstances. (*Elms v Elms* (1946) 72 Cal.App.2d 508, 513.) A judgment will not ordinarily be vacated at the demand of a defendant who was either grossly negligent or changed his mind after the judgment. (*Kromm v. Kromm* (1948) 84 Cal.App.2d 523, 529.) To obtain relief a defendant must have acted within a reasonable time. (*Hewins v. Walbeck* (1943) 60 Cal.App.2d 603, 611.) A party will not be relieved from his default unless he shows he acted in good faith and that his mistake, inadvertence, surprise or excusable neglect was the actual cause of his failure to appear. (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921-922.)

Here, there was a mistake of fact because the Principal of the general partner of Defendant Menlo Westridge Affordable Partners, LP mistakenly believed the email did not require immediate action. (Suri Decl. ¶ 2.)

Reasonability

Plaintiff contends that Mr. Suri’s admission that he saw the email from Defendant’s designated corporate agent but affirmatively chose not to open the link because he “mistakenly believed the email did not require immediate action” demonstrates a marked lack of diligence, especially for a

Principle of a general partner, thus making Mr. Suri's mistake inexcusable. (Opposition at pp. 3-4.)

Defendant Menlo Westridge argues that Mr. Suri's mistake is reasonable in an era of electronic service, inadvertent non-opening of an embedded link— particularly when emails may contain automated security warnings, duplicates, or non-substantive notifications—can reasonably lead to a mistaken belief that no action is required. (Motion at p. 5: 10-13.) This case is one of three related cases that Defendant Menlo Westridge is involved in, all arising out of the same construction project. Defendant Menlo Westridge has timely responded in one case and is anticipating their response to the other. Defendant Menlo Westridge posits this is further evidence that Defendant is not ignoring the litigation process but intends to actively participate and litigate on the merits. (Motion at p. 5: 16-20.)

Timeliness and Diligence

Plaintiff argues that it further expended effort and costs in obtaining the default Judgment in January 2026.(Opposition at p. 4: 17-19.)Defendant Menlo Westridge mentions that it twice sought an agreement to set aside the default but received zero response from Plaintiff who simply proceeded to obtain a default judgment after outreach by Defendant's counsel. (Sawyer Decl. ¶ 2.) When the attempt to secure this relief voluntarily failed, Defendant brought this motion. Defendant Menlo Westridge has thus acted within a reasonable time, and well within the 180-day limit imposed by Code of Civil Procedure section 473.

Considering the totality of the circumstances, Defendant Menlo Westridge has shown a satisfactory excuse for its default, and diligence in making the motion after discovery of the default judgement. Accordingly, the Court finds good cause to grant Defendant's Motion.

Ruling

1. The Court **grants Defendant Menlo Westridge Affordable Partner, LP's Motion to Set Aside Default.**
2. The Court will set a Case Management Conference for this case at the hearing on June 3, 2026. The Parties are ordered to appear remotely or in-person for the CMC.

17. 9:00 AM CASE NUMBER: C25-02245

CASE NAME: FERBER LAW VS. JAGJEET SINGH

***HEARING ON MOTION IN RE: FOR INSTALLMENT PAYMENT ORDER AND STAY OF ENFORCEMENT OF JUDGMENT**

FILED BY:

TENTATIVE RULING:

Summary

Defendant Jagjeet Singh's Motion for Installment Payment Order and Stay of Enforcement pertaining to the judgment entered against him by Plaintiff Ferber Law is **denied**.

Background

On August 6, 2025, Plaintiff Ferber Law, A Professional Corporation, filed a complaint against

Defendant for unpaid legal fees, and after Defendant failed to respond, a default was entered on October 7, 2025, followed by a default judgment of \$55,992.35 on December 1, 2025, with an Abstract of Judgment recorded on December 23, 2025. Defendant has now filed a Motion for Installment Payments and for a Stay of Enforcement.

Plaintiff filed an opposition on May 15, 2026, which, in essence, claims that Defendant does not cite to statutory or decisional authority that allows the relief requested by Defendant. Defendant filed a "reply" brief on May 22, 2026, which contains exhibits not properly authenticated by declaration. The Court does not consider the documents attached to Defendant's reply brief.

Analyses

Self-Represented Litigant

The Court is aware that Defendant is proceeding without an attorney in this lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594. Applied here, there is no evidence that Defendant was misled by the Court or Plaintiff.

Defendant Does Not Cite to Authority Allowing Post-Judgment Relief Requested

Defendant cites to Code of Civil Procedure § 683.520, requesting an installment plan and stay of enforcement, but this statute does not exist. Defendant also relies on Cal. Code of Civ. Proc. § 918 as the basis for a stay. This section only permits a stay pending an appeal. Here, no appeal was filed by Defendant. Accordingly, this section does not apply.

Since Defendant fails to provide any valid statutory or legal basis for the Motion, the Court finds good cause to deny this motion.

Ruling

Defendant's Motion for Install Payment and Request for Stay is **denied**.

18. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
*HEARING ON MOTION IN RE: STRIKE PLAINTIFFS' COMPLAINT CCP 425.16
FILED BY: JARDINE, WENDY CHAPIN
TENTATIVE RULING:

The Court continues the hearing on this motion to June 10, 2026 at 9:00 a.m.

19. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: JARDINE, WENDY CHAPIN
TENTATIVE RULING:

The Court continues the hearing on this motion to June 10, 2026 at 9:00 a.m.

20. 9:00 AM CASE NUMBER: C25-03654
CASE NAME: RACHYLL DEMPSEY VS. FCA US LLC,
HEARING ON DEMURRER TO: ANSWER
FILED BY: DEMPSEY, RACHYLL
TENTATIVE RULING:

Summary

Before the Court is Plaintiff Rachyll Dempsey's ("Plaintiff") Demurrer. The Demurrer relates to Defendant FCA US LLC's ("FCA" or "Defendant") Answer to Plaintiff's Complaint.

Plaintiffs demur to Defendants second through twenty-fifth affirmative defenses on several grounds.

For the following reasons, the Demurrer is **SUSTAINED-IN-PART** and **OVERRULED-IN-PART**.

The Demurrer is **SUSTAINED WITH LEAVE TO AMEND**, as to the second, third, fifth, sixth, seventh, eighth, eleventh, fourteenth, fifteenth, sixteenth, twentieth, twenty-second, twenty-third, and twenty-fourth affirmative defenses.

The Demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND** as to the seventeenth, eighteenth, twenty-first, and twenty-fifth affirmative defenses.

The Demurrer is **OVERRULED** as to the thirteenth and nineteenth affirmative defenses.

The Demurrer is **MOOT** as to the fourth, ninth, tenth, and twelfth affirmative defenses.

I. Legal Standard

A party against whom an answer has been filed may object by demurrer on the following grounds: (a) the answer does not state facts sufficient to constitute a defense, (b) the answer is uncertain, or (c) where the answer pleads a contract and it cannot be ascertained from the answer whether the contract is written or oral. (Code Civ. Proc., § 430.20.) A demurrer may be taken to the entire answer or to any one or more of several defenses in it. (Code Civ. Proc., § 430.50(b).) “A demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732.) The allegations of the pleading demurred to are regarded as true. (*Ibid.*)

“Unlike the usual general demurrer to a complaint the inquiry is not into the statement of a *cause of action*. Instead it is whether the answer raises a *defense* to the plaintiff’s stated cause of action.” (*Timberidge Enterprises, Inc. v. City of Santa Rosa* (1978) 86 Cal.App.3d 873, 879-880 (emphasis in original).) The analysis of whether an answer states a defense is governed by the same principles as that of whether a complaint states a cause of action. (*South Shore Land Co., supra*, 226 Cal.App.2d 725, 732.)

The sufficiency of an answer is evaluated with reference to the complaint it purports to answer. (*South Shore Land Co., supra*, 226 Cal.App.2d 725, 733.) A defendant must set forth only the “essential facts” of the affirmative defense, “sufficient to acquaint [plaintiff] with the nature, source and extent” of the defense. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 608.) This is known as the “fair notice” test.

Code of Civil Procedure § 431.30(b) provides that an answer to a complaint shall contain: (1) the general or specific denial of the material allegations of the complaint controverted by the defendant, and (2) a statement of any new matter constituting a defense. “The phrase ‘new matter’ refers to something relied on by a defendant which is not put in issue by the plaintiff. Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as ‘new matter.’” (*State Farm Mut. Auto. Ins. Co. v. Superior Court* (1991) 228 Cal.App.3d 721, 725, internal citations omitted.) Where, however, the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not ‘new matter,’ but only a traverse.” (*State Farm Mut. Auto. Ins. Co., supra*, 228 Cal.App.3d at 725.) Traverse need not be specifically alleged. (*Ibid.*)

Allegations of new matter in an answer should not be proffered in the form of terse legal conclusions but rather they should be averred as carefully and with as much detail as the facts that constitute the cause of action alleged in the complaint. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384; *Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 812-813.)

Defendant contends that *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, is not persuasive in the demurrer-to-answer context because it arises in the summary judgment context. (Opposition to PLN Demurrer to Def Answer (“Opp.”) at 4:14-22.) The Court disagrees. The specificity requirement articulated in *FPI Development* derives from the general pleading principle that ultimate facts, rather than legal conclusions, must be alleged, a principle also expressed in *Quantification*

Settlement Agreement Cases (2011) 201 Cal.App.4th 758, a published Court of Appeal decision arising in a different procedural context. (*South Shore Land Co.*, *supra*, 226 Cal.App.2d 725, 732 [the determination whether an answer states a defense is governed by the same principles applicable to determining if a complaint states a cause of action].) Applying that principle to affirmative defenses through the equivalence framework established by *South Shore* is not an extension of *FPI Development* beyond its holding; it is an application of the underlying pleading doctrine that both *FPI Development* and *Quantification Settlement Agreement Cases* express. Defendant's reliance on a trial court opinion (*Serfas Serv. Station, Inc. v. TLC Props., Inc.*, 2024 Cal. Super. LEXIS 8521) for the proposition that "FPI Development is not persuasive in the context of a demurrer to an answer" (Opp. at 4:14-22) is unavailing, as such decisions are not binding authority on which this court may rely. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455.)

II. Factual and Procedural Background

This case arises out of a dispute between parties to a sale of an allegedly defective vehicle.

Plaintiff Rachyll Dempsey ("Ms. Dempsey") purchased a new 2022 Jeep Wrangler ("the Vehicle") from Defendant FCA US LLC ("FCA") on August 13, 2022. (Complaint ("Compl.") at 2:25.) Upon purchasing the Vehicle, Ms. Dempsey received written, express, and implied warranties from FCA promising that, *inter alia*, the Vehicle and its components would be free from defects and fit for the ordinary purposes for which it was intended, the Vehicle would conform to promises and affirmations of fact made, and FCA "would perform any repairs, alignments, adjustments, and/or replacements of any parts necessary to ensure that the Vehicle was free from any defects in material and workmanship." (*Id.* at 2:27-3:6.) The Vehicle's warranties included a three-year or 36,000-mile basic warranty and a five-year or 60,000-mile powertrain warranty. (*Id.* at 3:7-8.)

Ms. Dempsey alleges that the Vehicle sold to her by FCA had serious defects and nonconformities to warranty and subsequently developed other serious defects and nonconformities, including, but not limited to defects relating to the steering and transmission systems. (Compl. at 3:9-11.)

Ms. Dempsey alleges that she performed all conditions required of her under the contract and warranties except insofar as she was unable to do so as a result of acts or omissions of FCA. (Compl. at 3:22-25.)

Ms. Dempsey brought the Vehicle to FCA's authorized service and repair facilities "on numerous occasions" to report "malfunctions, misadjustments, and/or nonconformities existent with the Vehicle" so that Defendant might repair the alleged nonconformities. (Compl. at 3:26-4:6.) Specifically, she identified Michael Stead's Auto Depot as an authorized facility to which she delivered the vehicle on "multiple occasions" for repairs to the steering and transmission systems. (*Id.* at 10:2-8.)

Ms. Dempsey identifies the following problems with the Vehicle's steering: "vibration felt in steering wheel when going over bumps or uneven road at freeway speeds, and vehicle shak[ing] abnormally at highway speeds in the front end; requiring the replacement of the following parts: steering damper;

and/or any other similar concerns identified in the repair history...” (Compl. at 5:25-28.)

Ms. Dempsey identifies the following problems with the Vehicle’s transmission: “clutch has a hard shift into 2nd gear; requiring the replacement of the following parts: clutch release bearing; clutch pressure plate kit; engine flywheel; which require the following recalls to be performed: 19A and/or any other similar concerns identified in the repair history...” (Compl. at 6:1-6.)

Ms. Dempsey alleges that each time she brought the Vehicle to FCA’s authorized service and repair facilities, she was told they could, would, and did repair the Vehicle such that it would conform to the applicable warranties. (*Id.* at 4:7-11.) Despite these assurances, Ms. Dempsey alleges that the defects, malfunctions, maladjustments, and/or nonconformities exist even though “a reasonable number of attempts to repair was given.” (*Id.* at 4:11-13.)

Ms. Dempsey, in her Complaint, revokes acceptance of the sales contract. (Compl. at 3:12.)

Ms. Dempsey alleges that FCA’s failure to perform the proper repairs, parts replacements, and/or adjustments to conform the Vehicle to the express warranties, and failure to do so in good and workmanlike manner, constitutes a breach of FCA’s obligations under the Song-Beverly Consumer Warranty Act (“Song-Beverly Act”). (Compl. at 6:15-23.)

More than 30 days have passed since delivery of the Vehicle to Michael Stead’s Auto Depot and Ms. Dempsey alleges Defendant and Michael Stead’s Auto Depot “have failed to tender the Vehicle back to Plaintiff in conformance with its warranties.” (Compl. at 10:6-8.)

Ms. Dempsey served FCA with a pre-litigation demand letter by certified mail on October 27, 2025. (Compl. at 5:2-5.) More than 30 days passed without FCA providing restitution pursuant to the Song-Beverly Act; this alleged inaction prompted the instant suit, which was filed December 11, 2025. (*Ibid.*)

Ms. Dempsey alleges that FCA’s failure to refund the price paid for the Vehicle or to replace the Vehicle “was intentional and justifies an award of a Civil Penalty in an amount not to exceed two times Plaintiff’s actual damages.” (Compl. at 6:27-7:2.)

III. Meet and Confer

It is the responsibility of the demurring party to meet and confer with the opposing party at least five days prior to the date the responsive pleading is due. (Code Civ. Proc., § 430.41(a)(2).)

Defendant filed its Answer in the instant case on January 16, 2026. On January 19, 2026, Plaintiff’s counsel Astrid Souto emailed Defense counsel requesting availability for a phone call to discuss the grounds for Plaintiff’s Demurrer, which Ms. Souto outlined in the email. (Dem., Exhibit B.) Defense counsel Lauren Petre responded January 20, 2026, informing Ms. Souto that Defendant would voluntarily withdraw its contributory negligence, estoppel, waiver, and unclean hands defenses. (*Id.*, Exhibit C.) Ms. Souto replied the same day, giving Defendant a January 26, 2026 deadline to file an amended Answer. (*Ibid.*) Defendant did not file an amended Answer by the deadline or thereafter. (*Id.* at 18:20-22.) Plaintiff filed the instant Demurrer to Defendant’s Answer on January 28, 2026.

California Code of Civil Procedure section 430.41 requires that a “good faith attempt to meet and confer was made.” Although the parties did not meet and confer by phone, in person, or by video conference before the instant motion was filed, the Court finds that Plaintiff met her statutory burden and proceeds with its ruling accordingly.

IV. Analysis

Second Affirmative Defense

This affirmative defense alleges, “Plaintiff’s claims are barred by the applicable statute of limitations, including but not limited to California Code of Civil Procedure §§ 337, 338, 338.1, et seq., and Commercial Code § 2725, etc.”

To properly plead a statute of limitations defense a party must either allege facts showing that the action is time barred and allege the lateness of the action as a defense, or plead the specific section and subdivision. (Code Civ. Proc., § 458; *Martin v. Van Bergen* (2012) 209 Cal.App.4th 84, 91.) “It is necessary for defendant who pleads the statute of limitations to specify the applicable section, and, *if such section is divided into subdivisions, to specify the particular subdivision or subdivisions thereof. If he fails to do so the plea is insufficient.*” (*Brown v. World Church* (1969) 272 Cal.App.2d 684, 691 (emphasis added).)

Here, FCA alleges Ms. Dempsey’s claims are time barred, however Code of Civil Procedure sections 337 and 338 and Commercial Code 2725 all have multiple subdivisions, and FCA fails to specify to which subdivision it refers. Making things even more uncertain, Code of Civil Procedure section 338.1 is entirely inapplicable as it applies to “[a]ction[s] for civil penalties or punitive damages related to hazardous substances.” (Code Civ. Proc., § 338.1.)

Moreover, even if the filing date and purchase date appearing on the face of the Complaint were sufficient to raise a limitations bar, the second affirmative defense fails to contend with Plaintiff’s tolling allegations, which allege equitable tolling, the discovery rule, fraudulent concealment, the repair rule, and class action tolling. (Compl. at 5:6-11.) A statute of limitations defense that does not address Plaintiff’s pleaded tolling theories does not give fair notice of the nature and extent of the defense. (*Ludgate Ins. Co., supra*, 82 Cal.App.4th at 608.)

Accordingly, the Demurrer to the second affirmative defense is **SUSTAINED WITH LEAVE TO AMEND.**

Third Affirmative Defense

This affirmative defense alleges, “[i]f Plaintiff sustained any damages as alleged in the Complaint, such damages were proximately caused and contributed to by Plaintiff by failing to act in a manner ordinarily expected of a reasonably prudent person in the conduct of their affairs and business. The contributory negligence and fault of Plaintiff eliminates or diminishes any recovery sought in Plaintiff’s Complaint.”

This defense constitutes new matter. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co., supra*, 228 Cal.App.3d at 725.) Although Ms. Dempsey alleges she conducted herself in accordance

with all required duties under the contract and warranties, her Complaint does not otherwise put her conduct at issue. (Compl. at 3:22-25.) A comparative fault defense is not merely a denial of the allegation that Plaintiff adequately performed, it introduces the distinct factual claim that Plaintiff was negligent, and her negligence contributed to her damages. This defense is not responsive to any essential allegation contained in Plaintiff's Complaint. (*State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) Because Plaintiff's own negligent conduct is not put at issue by the Complaint, this affirmative defense qualifies as new matter and FCA must plead ultimate facts supporting this defense; terse legal conclusions are insufficient. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the third affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Fourth Affirmative Defense

This affirmative defense alleges, "[i]f Plaintiff sustained any damages as alleged in the Complaint, such damages were proximately caused and contributed to by persons and/or parties other than Defendant by such persons or parties' failure to conduct themselves in a manner ordinarily expected of reasonably prudent persons in the conduct of their affairs and business. The contributory negligence and fault of persons and/or parties other than Defendant eliminates or diminishes any recovery sought in Plaintiff's Complaint."

Defendant in its Opposition states that it has agreed to withdraw its contributory negligence defense; Plaintiff's demurrer with respect to Defendant's fourth affirmative defense is, accordingly, **MOOT**. (Opp. at 2:11-13.)

Fifth Affirmative Defense

This affirmative defense alleges, "[i]f Plaintiff sustained any damages as alleged in the Complaint, such damages were proximately caused and contributed to by Plaintiff in failing to mitigate Plaintiff's damages. Plaintiff's failure to mitigate damages eliminates or diminishes any recovery herein."

This defense as alleged is uncertain. (Code Civ. Proc., § 430.20(b).) Plaintiff's complaint alleges that she took the Vehicle to FCA's authorized service and repair facilities "on numerous occasions" to report "malfunctions, misadjustments, and/or nonconformities existent with the Vehicle" so that Defendant might repair the alleged nonconformities. (Compl. at 3:26-4:6.) Specifically, she identified Michael Stead's Auto Depot as an authorized facility to which she delivered the vehicle on "multiple occasions" for repairs to the steering and transmission systems. (*Id.* at 10:2-8.) To this end, she alleged she fulfilled all duties required under contract and warranties. (*Id.* at 3:22-25.)

To the extent that Defendant's fifth affirmative defense contends only that Ms. Dempsey failed to take those steps, it may function as a traverse of these allegations. (*State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) However, the defense, as pled, does not identify what Ms. Dempsey allegedly failed to do, when she failed to do it, or how the failure contributed to her damages. Ms. Dempsey cannot reasonably determine from the face of this defense whether FCA contends she failed to bring the Vehicle in for repairs at all, failed to act promptly, failed to seek alternative relief,

or something else entirely. The defense is therefore uncertain within the meaning of Code of Civil Procedure section 430.20(b).

To the extent that the defense introduces factual theories not at issue in Plaintiff's Complaint, it constitutes new matter and must be pled with ultimate facts. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725; *FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the fifth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Sixth Affirmative Defense

This affirmative defense alleges, "[t]o the extent that Defendant has or will incur any damages by reason of Plaintiff's conduct arising out of this case, then Defendant has the right to offset any amounts owed by Plaintiff to Defendant against monies allegedly owed by Defendant to Plaintiff."

This defense has two independent defects.

First, it constitutes a terse legal conclusion. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384; *Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 812-813.) FCA alleges no facts in support of the conclusion that it is entitled to any offset. FCA does not identify what conduct of Ms. Dempsey caused it damages, what those damages are, or what amounts Ms. Dempsey allegedly owes to FCA. Without these facts the defense cannot be fairly evaluated or responded to.

Second, the defense is entirely conditional and hypothetical. FCA does not assert that it has actually incurred damages as a result of Ms. Dempsey's conduct; it asserts only that it may do so in the future. A defense premised on damages FCA has not alleged and may never sustain does not give Ms. Dempsey fair notice of any actual claim against her. (*Ludgate Ins. Co.*, *supra*, 82 Cal.App.4th at 608.)

Accordingly, the Demurrer to the sixth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Seventh Affirmative Defense

This affirmative defense alleges, "Plaintiff's cause of action for breach of express warranty and incidental and consequential damages is barred by the express disclaimers and limitations of liability contained in the alleged express warranties."

This defense constitutes new matter. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) Plaintiff's Complaint alleges generally that the Vehicle came with written, express, and implied warranties from FCA (Compl. at 2:27-3:8.) However, though Plaintiff alleges that these warranties were breached by the Defendant, she does not allege the specific terms, limitations, or disclaimer provisions of the warranties in her Complaint. FCA's seventh affirmative defense rests entirely on specific contractual language that does not appear in the Complaint and is not before the Court. Because a demurrer reaches only to the contents of the pleading and matters subject to judicial notice (*South Shore Land Co.*, *supra*, 226 Cal.App.2d 725, 732), and the warranty

documents are neither, the defense as pled asks the Court to find Plaintiff's claims barred by contract language that cannot be evaluated on demurrer.

As new matter, the seventh affirmative defense must be pled with ultimate facts identifying the specific disclaimer language relied upon, where it appears in the warranty documents, and how it applies to bar Plaintiff's particular claims. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725; *FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.) The defense as pled does not do so.

Accordingly, the Demurrer to the seventh affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Eighth Affirmative Defense

This affirmative defense alleges, "[e]ach and every cause of action based upon breach of implied warranty is barred by virtue of Civil Code § 1791.1(c)."

This defense constitutes new matter. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) Plaintiff's Complaint does not put the duration of the implied warranty at issue. FCA must therefore plead ultimate facts establishing that the implied warranty of merchantability expired before Ms. Dempsey's claims accrued. The defense as pled does not do so. Moreover, the defense as pled works against FCA on the face of the Complaint. Plaintiff alleges that the Vehicle was sold with a three-year or 36,000-mile basic warranty and a five-year or 60,000-mile powertrain warranty. (Compl. at 3:7-8.) Under Civil Code section 1791.1(c), the implied warranty runs coextensively with the express warranty where express warranty duration is reasonable. FCA does not allege any other basis on which the implied warranty would have expired prior to the accrual of Ms. Dempsey's claims.

Accordingly, the Demurrer to the eighth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Ninth Affirmative Defense

This affirmative defense alleges, "Plaintiff has engaged in conduct and activity sufficient to estop Plaintiff from asserting all or any part of the claims asserted or relief sought in Plaintiff's Complaint."

Defendant in its Opposition states that it has agreed to withdraw its estoppel defense; Plaintiff's demurrer with respect to Defendant's ninth affirmative defense is, accordingly, **MOOT**. (Opposition to PLN Demurrer to Def Answer ("Opp.") at 2:11-13.)

Tenth Affirmative Defense

This affirmative defense alleges, "Plaintiff has engaged in conduct and activities sufficient to constitute a waiver of any alleged breach of contract, breach of warranty, negligence, or any other conduct as set forth in Plaintiff's Complaint."

Defendant in its Opposition states that it has agreed to withdraw its waiver defense; Plaintiff's demurrer with respect to Defendant's tenth affirmative defense is, accordingly, **MOOT**. (Opposition

to PLN Demurrer to Def Answer ("Opp.") at 2:11-13.)

Eleventh Affirmative Defense

This affirmative defense alleges, "Plaintiff waited an unreasonable period of time to complain of the alleged acts or omissions at issue in Plaintiff's Complaint so as to prejudice Defendant. Plaintiff is, therefore, guilty of laches and is barred from recovery."

This defense constitutes new matter. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) The elements of laches are (1) delay in asserting a right or a claim; (2) the delay was not reasonable or excusable; and (3) prejudice to the party against whom laches is asserted. (*R & J Sheet Metal, Inc. v. W.E. O'Neil Construction Co. of California* (2025) 111 Cal.App.5th 878, 901.) The eleventh affirmative defense fails to plead these elements, and none are responsive to any essential allegations in the Complaint. FCA must allege ultimate facts pleading the elements of laches, and it did not do so. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.)

FCA asserts only that Ms. Dempsey waited an unreasonable period of time and that this prejudiced FCA. These are bare legal conclusions that do not identify what period of delay FCA contends was unreasonable under the circumstances, or how FCA was specifically prejudiced. Such a terse legal conclusion does not give Ms. Dempsey fair notice of the nature and extent of the defense. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813; *Ludgate Ins. Co.*, *supra*, 82 Cal.App.4th at 608.)

Accordingly, the Demurrer to the eleventh affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Twelfth Affirmative Defense

This affirmative defense alleges, "Plaintiff's Complaint, and the claims and relief sought therein, is barred by the doctrine of unclean hands and/or bad faith."

Defendant in its Opposition states that it has agreed to withdraw its unclean hands defense; Plaintiff's demurrer with respect to Defendant's twelfth affirmative defense is, accordingly, **MOOT**. (Opposition to PLN Demurrer to Def Answer ("Opp.") at 2:11-13.)

Thirteenth Affirmative Defense

This affirmative defense alleges, "[a]ny failure to perform the obligations as described in the Complaint resulted from Plaintiff's failure to perform as required by the contract and/or warranty. Performance of Plaintiff's obligations was a condition precedent to the performance of Defendant's obligations."

Where a defense sets forth facts showing some essential allegation of the complaint is not true, such facts are not new matter, but only a traverse." (*State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) This defense is traverse; it is responsive to paragraph 15 of Plaintiff's Complaint, wherein she

contends that she performed all conditions required of her under the contract and warranties apart from those excused by acts or omissions of Defendant's. (Compl. at 3:22-25.) Accordingly, this defense need not be specifically alleged. (*State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.)

Accordingly, the Demurrer to the thirteenth affirmative defense is **OVERRULED**.

Fourteenth Affirmative Defense

This affirmative defense alleges, "Plaintiff's causes of action arising out of the Song-Beverly Consumer Warranty Act are barred to the extent Plaintiff did not purchase the subject vehicle within the State of California."

This defense constitutes new matter. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) Plaintiff's Complaint does not allege where she purchased the Vehicle, thus this defense is not responsive to any essential allegations in the Complaint. Because it is new matter, FCA must plead ultimate facts establishing that Ms. Dempsey did not purchase the Vehicle in California. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the fourteenth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Fifteenth Affirmative Defense

This affirmative defense alleges, "Plaintiff is barred from recovery by virtue of Civil Code § 1794.3 since the claimed defect or nonconformity was caused by the unauthorized or unreasonable use of the vehicle following sale and/or a failure to properly maintain the vehicle."

Civil Code section 1794.3 provides that a manufacturer or seller is not liable under the Song-Beverly Act where a nonconformity is caused by unauthorized or unreasonable use of the consumer good following the sale. (Cal Civ Code § 1794.3) This affirmative defense has statutory grounding and is not legally unavailable on its face, however it is new matter.

Plaintiff's Complaint does not put her use or maintenance of the Vehicle at issue; it alleges only that the Vehicle was delivered with defects and that FCA failed to repair them after a reasonable number of attempts. (Compl. at 3:9-11, 3:26-4:6, 10:2-8.) Because Plaintiff's use and maintenance of the Vehicle are not responsive to any essential allegation of the Complaint, FCA must plead ultimate facts establishing this defense. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the fifteenth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Sixteenth Affirmative Defense

This affirmative defense alleges, "[t]he vehicle was not defective or in an unmerchantable condition

at any time when it left the possession, custody, and control of the manufacturer. Any damage to the subject automobile was caused and created by changes and alterations made to the vehicle, subsequent to the vehicle's manufacture and/or sale, by persons other than the manufacturer or any of its agents, servants, or employees; thus, barring Plaintiff's recovery."

This defense contains two distinct theories. The first, that the Vehicle was not defective when it left FCA's possession, functions as a traverse of Plaintiff's allegation that the Vehicle was delivered with serious defects and nonconformities. (Compl. at 3:9-11.) As a traverse, this theory does not require additional facts beyond those already in the Complaint. (*State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.)

The second theory, however, that post-sale alterations by third parties caused damage to the Vehicle, constitutes new matter. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.) Plaintiff's Complaint does not allege any damage, changes, or alterations to the vehicle after its delivery, apart from the work performed by FCA's authorized service and repair facilities. (Compl. at 3:26-4:6.) Because post-sale alteration by third parties is not responsive to any essential allegation of the Complaint, FCA must plead ultimate facts establishing this theory, including identifying what alterations were made, by whom, and how they caused the specific nonconformities alleged. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the sixteenth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Seventeenth Affirmative Defense

This affirmative defense alleges, "[t]he repair process to Plaintiff's vehicle was appropriate and proper and is believed to have been done with the consent of the Plaintiff."

This defense does not constitute a defense to any claim alleged in the Complaint. (Code Civ. Proc., § 430.20(a).) Plaintiff does not allege that the repair process was improper, inappropriate, or non-consensual. Her claim rests on FCA's failure to conform the Vehicle to the applicable warranties after a reasonable number of repair attempts, not on the manner or procedural propriety of the repair process. (Compl. at 3:9-11, 3:26-4:6, 10:2-8.) The propriety of the repair process and Plaintiff's consent to repairs are therefore not responsive to any essential allegation of the Complaint and do not constitute a defense to claims alleged.

Accordingly, the Demurrer to the seventeenth affirmative defense is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Eighteenth Affirmative Defense

This affirmative defense alleges, "[a]t all relevant times, Defendant acted in conformity with industry standards based upon the state of knowledge existing at the various time periods alleged in the Complaint, and therefore Plaintiff is barred from any recovery."

This defense does not constitute a defense to any claim alleged in the Complaint. (Code Civ. Proc., § 430.20(a).) Plaintiff does not allege that FCA failed to comply with industry standards. Further, FCA's compliance with industry standards would not bar recovery on the claims as pled.

Second, to the extent the defense introduces the affirmative factual claim that FCA complied with specific industry standards, it constitutes new matter that must be pled with ultimate facts. (Code Civ. Proc., § 431.30(b)(2); *State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725; *FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the eighteenth affirmative defense is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Nineteenth Affirmative Defense

This affirmative defense alleges, "Plaintiff is precluded from any recovery pursuant to the Song-Beverly Consumer Warranty Act because Plaintiff failed and refused to provide a reasonable opportunity to repair."

This defense is traverse of Plaintiff's allegation that she delivered the Vehicle to FCA's authorized service and repair facilities on numerous occasions and performed all conditions required of her under contract and warranties. (Compl. at 3:22-25, 3:26-4:6.) As traverse, no additional facts are required. (*State Farm Mut. Auto. Ins. Co.*, *supra*, 228 Cal.App.3d at 725.)

Accordingly, the Demurrer to the nineteenth affirmative defense is **OVERRULED**.

Twentieth Affirmative Defense

This affirmative defense alleges, "Plaintiff's Complaint fails to state sufficient facts to warrant the imposition of civil penalties because it was believed that replacement or repurchase of the subject vehicle was not appropriate under the circumstances then known."

This defense fails on two independent grounds.

First, the defense is uncertain. Code Civ. Proc., § 430.20(b).) It simultaneously asserts a challenge to the sufficiency of the Complaint's civil penalty allegations and a merits defense that replacement or repurchase was not appropriate under the circumstances then known. These are distinct theories and the defense does not make clear which FCA is asserting, leaving Ms. Dempsey without fair notice of what she must respond to. (*Ludgate Ins. Co.*, *supra*, 82 Cal.App.4th at 608.)

Second, to the extent that FCA challenges the sufficiency of the Complaint's civil penalty allegations, that is not a proper affirmative defense. A challenge to the sufficiency of a pleading must be raised by demurrer or motion to strike, not by affirmative defense.

Accordingly, the Demurrer to the twentieth affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Twenty-First Affirmative Defense

This affirmative defense alleges, “[a]ny cause of action alleged in Plaintiff’s Complaint seeking civil penalties is barred by the statute of limitations contained in the California Code of Civil Procedure, specifically § 340.”

This defense fails on two independent grounds.

First, Code of Civil Procedure section 340 has no viable application to Song-Beverly civil penalties. Civil penalties under the Song-Beverly Act are not an independent cause of action with their own limitations period; they are parasitic on the underlying warranty claim and are governed by the same limitations period. FCA cannot invoke a separate one-year limitations period for a claim that accrues and expires with the underlying warranty claims. (Civ. Code, § 1794(c).)

Second, even if Code of Civil Procedure section 340 had some application here, FCA fails to specify which subdivision it relies upon, as required by Code of Civil Procedure section 458. Section 340 contains multiple subdivisions covering distinct subject matter, and FCA’s bare citation without identifying the applicable subdivision does not give fair notice of the defense and is insufficient. (*Brown, supra*, 272 Cal.App.2d at 691.)

Because there is no viable limitations period applicable to Song-Beverly civil penalties independent of the underlying warranty claim, no amended version of this defense could cure these deficiencies.

Accordingly, the Demurrer to the twenty-first affirmative defense is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Twenty-Second Affirmative Defense

This affirmative defense alleges, “FCA US LLC contends that the Complaint fails to state facts sufficient to warrant the imposition of civil penalties because Plaintiff failed to serve upon FCA US LLC written notice requesting that FCA US LLC comply with paragraph (2) of subdivision (d) of Civil Code § 1793.2 as required by Civil Code § 1794(e)(3).”

This defense constitutes new matter. Plaintiff’s Complaint does not allege the Tanner Consumer Protection Act presumption under Civil Code section 1793.22 was triggered, and the applicability of the notice requirement in Civil Code section 1794(e)(3) is therefore not responsive to any essential allegation of the complaint. (*FPI Development, Inc., supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases, supra*, 201 Cal.App.4th at 812-813.)

Civil Code section 1794(e)(3) provides that after the occurrence of the events giving rise to the presumption established in Civil Code section 1793.22(b), a buyer may serve upon the manufacturer written notice requesting compliance with Civil Code section 1793.2(d)(2), and that if the buyer fails to serve such notice, the manufacturer shall not be liable for a civil penalty under that subdivision.

By its plain terms, the written notice requirement of Civil Code section 1794(e)(3) is triggered only where the events giving rise to the Tanner Consumer Protection Act presumption under Civil Code

section 1793.22 have occurred. That presumption requires the triggering events to occur within 18 months from delivery or 18,000 miles on the odometer, whichever occurs first.

Plaintiff's Complaint does not allege that the Vehicle's nonconformities or repair history satisfy the conditions for the Tanner presumption within that timeframe. Accordingly, the applicability of Civil Code section 1794(e)(3) to this action is not established on the face of the Complaint, and FCA must plead ultimate facts establishing that the Tanner presumption was triggered and that the notice requirement therefore applies. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the twenty-second affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Twenty-Third Affirmative Defense

This affirmative defense alleges, "Plaintiff's demands for civil penalties in the Complaint under the Song-Beverly Warranty Act are barred by the failure of Plaintiff to comply with the applicable statutory requirements under California Code of Civil Procedure section 871.20 et seq. before filing this action."

This defense constitutes new matter. Code of Civil Procedure section 871.20 applies only to actions brought against a manufacturer who has elected under Code of Civil Procedure section 871.29 to proceed under that chapter. FCA pleads no facts establishing that it made the election required to trigger the chapter's applicability. Without that predicate fact, the statutory requirements FCA invokes do not apply to this action. FCA must plead ultimate facts establishing that it made the required election under Code of Civil Procedure section 871.29. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813.)

Accordingly, the Demurrer to the twenty-third affirmative defense is **SUSTAINED WITH LEAVE TO AMEND**.

Twenty-Fourth Affirmative Defense

This affirmative defense alleges, "[i]mposition of a civil penalty in this case would violate Defendant's rights under the Fourteenth Amendment to the United States Constitution and/or Article I of the California Constitution."

FCA does not identify which provisions of Article I of the California Constitution it invokes, what constitutional right is implicated, or how imposition of a civil penalty in this specific case would violate it. This defense constitutes a terse legal conclusion devoid of factual content that does not provide Ms. Dempsey with fair notice of the constitutional theory being asserted. (*FPI Development, Inc.*, *supra*, 231 Cal.App.3d at 384; *Quantification Settlement Agreement Cases*, *supra*, 201 Cal.App.4th at 812-813; *Ludgate Ins. Co.*, *supra*, 82 Cal.App.4th at 608.)

Accordingly, the Demurrer to the twenty-fourth affirmative defense is **SUSTAINED WITH LEAVE TO**

AMEND.

Twenty-Fifth Affirmative Defense

This affirmative defense alleges, “FCA US LLC presently has insufficient knowledge or information on which to form a belief as to whether it may have additional, as yet unstated, defenses available. FCA US LLC reserves the right to assert additional defenses in the event that they would be appropriate.”

The twenty-fifth affirmative defense is not a cognizable affirmative defense. Code of Civil Procedure section 431.30(b) provides that an answer to a complaint shall contain: (1) the general or specific denial of the material allegations of the complaint controverted by the defendant, and (2) a statement of any new matter constituting a defense. A reservation of unidentified future defenses is neither a denial nor a statement of new matter. It does not allege any facts, raise any legal theory, or respond to any allegation in the Complaint. It therefore does not constitute a defense within the meaning of Code of Civil Procedure section 431.30(b). Moreover, Code of Civil Procedure section 472 already provides the mechanism by which a party may seek leave to amend a pleading to add a defense. (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.)

Accordingly, the Demurrer to the twenty-fifth affirmative defense is **SUSTAINED WITHOUT LEAVE TO AMEND**.

For the Foregoing reasons, the Court **SUSTAINS WITH LEAVE TO AMEND** the Demurrer to the second, third, fifth, sixth, seventh, eighth, eleventh, fourteenth, fifteenth, sixteenth, twentieth, twenty-second, twenty-third, and twenty-fourth affirmative defenses; the Court **SUSTAINS WITHOUT LEAVE TO AMEND** the Demurrer to the seventeenth, eighteenth, twenty-first, and twenty-fifth affirmative defenses; the Court **OVERRULES** the Demurrer to the thirteenth and nineteenth affirmative defenses; and the Court finds the Demurrer **MOOT** as to the fourth, ninth, tenth, and twelfth affirmative defenses.

Discovery Law & Motion

21. 9:01 AM CASE NUMBER: C23-01280

CASE NAME: LAURIE MIMS VS. GWEN BERTOLAMI LYSONS

*HEARING ON MOTION FOR DISCOVERY ORDER DEEMING REQUESTS FOR ADMISSION ADMITTED AGAINST GWEN BERTOLAMI LYSONS

FILED BY: MIMS, LAURIE

TENTATIVE RULING:

Summary

This Tentative Ruling applies to Lines 21 and 22. Before the Court are two discovery motions filed by Plaintiffs Laurie Mims and Derek Mims (“Plaintiffs”) against Defendant Gwen Bertolami Lyons (“Defendant”):

1. Motion for Order Deeming Request for Admissions Admitted against Defendant, filed on

March 27, 2026.

2. Motion to Compel Further Responses and Production of Documents to Defendant and request for monetary sanctions, filed on March 30, 2026.

These motions were originally scheduled for hearing on September 30, 2026 at 9:00 a.m. Proofs of service evidence service on Defendant's Counsel, David Ericksen, by e-mail on March 27, 2026 and March 30, 2026. By the Court's order on April 13, 2026, the Court advanced the hearing for these motions for June 3, 2026. The *Ex Parte* order was mailed and e-mailed to counsel of record on April 15, 2026, including Defendant's Counsel, David Ericksen.

Oppositions were due by Defendant on May 20, 2026. No timely oppositions were filed with the Court by Defendant.

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See

<https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

After considering the foregoing, the Court finds good cause to grant both of Plaintiff's Motions.

Ruling

- Plaintiff's Motion for Order Deeming Request for Admissions Admitted against Defendant, filed on March 27, 2026, is **granted**. Sanctions in the amount of \$1,110 is awarded to Plaintiff. The Court will execute the proposed order lodged on March 27, 2026.
- Plaintiff's Motion to Compel Further Responses and Production of Documents to Defendant and request for monetary sanctions in the amount of \$4,960, filed on March 30, 2026 is **granted**. The Court will execute the proposed order submitted to the court by e-mail on June 1, 2026.

22. 9:01 AM CASE NUMBER: C23-01280

CASE NAME: LAURIE MIMS VS. GWEN BERTOLAMI LYSONS

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO GWEN BERTOLAMI LYSONS**

FILED BY: MIMS, LAURIE

TENTATIVE RULING:

See Line 21.

23. 9:01 AM CASE NUMBER: C24-03380

CASE NAME: GREGORY SMITH VS. FCA US LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSE TO SPECIAL INTEROGS SET 2
FILED BY: SMITH, GREGORY**

TENTATIVE RULING:

Summary

This Tentative Ruling applies to Lines 23 and 24. The Court issues this tentative ruling for the following discovery motions filed by Plaintiff Gregory Smith:

1. Plaintiff Gregory Smith's ("Plaintiff") Motion to Compel Further Responses to Request for Production Set Two from Defendant FCA US LLC ("Defendant" or "FCA") and Request for Sanctions in the amount of \$2,704.50 filed on January 23, 2026. Plaintiff requests responses to Request for Production numbers 47-48, and 50-60 pursuant to Cal. Code of Civ. Proc. § 2031.310
2. Plaintiff's Motion to Compel Further Answers to Special Interrogatories, Set Two and for Sanctions in the amount of \$2,704.50 against Defendant filed on January 23, 2026. This motion seeks further code-complaint responses to special interrogatories nos. 47-58 pursuant to Cal. Code of Civ. Proc. § 2030.300(a) and 2030.030(d).

As set forth in this tentative ruling, the Court **grants** both motions in part and **denies** both motions in part.

Background

This lawsuit stems from FCA's alleged failure to fulfill its statutory obligations under the Song-Beverly Consumer Warranty Act. Plaintiff purchased a 2022 RAM 1500 (VIN: 1C6SRFJM2NN328864) for which FCA provided express and implied warranties. After acquiring the vehicle, Plaintiff alleges to have experienced multiple issues and brought the vehicle to authorized repair facilities on numerous occasions. Despite these repair attempts, Plaintiff alleges that FCA was unable to conform the vehicle to its applicable warranties, prompting the plaintiff to file a complaint alleging violations of the Song-Beverly Act.

The current dispute centers on discovery requests, with the Plaintiff having served a Second Set of Request for Production of Documents and Special Interrogatories on October 16, 2025 seeking information about FCA's backup procedures, preservation efforts, and retention policies.

FCA claims that it responded to these requests on November 20, 2025, and contends that the plaintiff's motion seeking further responses is harassing and unwarranted, particularly regarding Requests for Production Nos. 47-48 and 50-60.

FCA argues that these requests are overly broad, unduly burdensome, and constitute improper "discovery on discovery" rather than information relevant to the warranty claim. The timeline shows the lawsuit was filed on December 13, 2024, with the first discovery set served on February 28, 2025. FCA maintains it has fully complied with the plaintiff's voluminous first set of discovery requests and that the second set improperly investigates FCA's discovery processes without any showing that FCA

has been deficient in producing documentation relevant to the Song-Beverly claim. FCA has requested that the court deny the Plaintiff's motions in their entirety.

Analyses

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, 2030.300, *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138. In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court's local rules states that motions "should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved." L.R. 2.122(c). Cal. Code of Civ. Proc. § 2030.010 requires, at a minimum, attorneys to talk by telephone to work out issues, rather than just send written correspondence with an invitation to "call me if you should have any further questions or comments," which Courts have found to be insufficient. *Jovita Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 429, 431-433

Here, the record submitted to the Court shows that Counsel had exchanged written correspondence in an attempt to "meet and confer" with each other regarding the instant discovery disputes. While the attempts did not result in resolution, the Court finds that the Parties have just barely satisfied their obligation to informally resolve these discovery disputes prior to filing this motion as required by the Court's rules and the Code of Civil Procedure.

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor*

& *Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are "incomplete or evasive," or an "objection to an interrogatory is without merit or too general." When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Production or Inspection of Documents

Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230.) Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to compel or to limit discovery," or to fail to meet and confer to resolve discovery disputes informally.

CCP Section 2023.030(a) provides: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c). It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California's Discovery act was "intended to take the 'game' element out of trial preparation," considering that "a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise." (*Greyhound Corp. v. Super. Court In and For*

Merced County (1961) 56 Cal.2d 355).

In reviewing the separate statements, moving papers, oppositions and the declarations of Counsel Colby Meagle and Ziyi (Yolanda) Li and applying the foregoing statutory and decisional authorities, the Court makes the following findings and orders:

Ruling

1. The Court makes the following rulings on Plaintiff's Motion to Compel Further Responses to Request for Production, Set Two, numbers 47-48, and 50-60:

- No. 47. Denied. Defendant has complied with Cal. Code of Civ. Proc. § 2031.230.
- No. 48. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 50. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 51. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 52. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 53. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 54. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 55. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 56. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 57. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 58. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 59. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 60. Granted. Defendant's objections are overruled. Defendant shall prepare a response and shall produce further documents relating to document destruction and data destruction particular to the subject vehicle.

2. The Court makes the following rulings on Plaintiff's Responses to Special Interrogatories, Set Two, nos. 47-58:

- No. 47: Granted in part. Denied in part. Defendant's objections on the grounds that that this request is overly broad and vague is sustained. Defendant shall provide further responses with respect to the subject vehicle only.
- No. 48. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 49. Granted in part. Denied in part. Defendant's objections on the grounds that this is overly broad is sustained. Defendant shall provide further answers only as it relates to

person(s) in FCA who are responsible for the operation, maintenance, expansion, archiving and upkeep of the network for customer call logs for the subject vehicle.

- No. 50. Granted in part. Denied in par. See No. 49, above.
- No. 51. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 52. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 53. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 54. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 55. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 56. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 57 Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 58. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.

3. Time for Compliance

Defendant shall provide further code-complaint and verified answers to interrogatories and further responses to production, including the documents responsive to production, no later than 15 days from the date Defendant is served with this order.

4. Sanctions

Plaintiff's request for sanctions are denied. Each side to bear their own costs and attorney's fees for bringing and defendant against this motion.

Defendant's Counsel shall prepare and e-file a proposed order conforming to this tentative ruling, attaching a copy of this tentative ruling as an exhibit, no later than five (5) court days from the date of the hearing.

24. 9:01 AM CASE NUMBER: C24-03380

CASE NAME: GREGORY SMITH VS. FCA US LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD SET 2**

FILED BY: SMITH, GREGORY

TENTATIVE RULING:

See Line 23